

INFORMATION

New Business or Renewal:	New Business to AssuredPartners & Agent
Expiring Policy Number:	N/A
Incumbent Insurer:	N/A
Incumbent Renewal Position:	Not been advised
Expiring Limit:	N/A
Expiring Deductible:	N/A
Expiring Premium:	N/A
Incumbent Renewal Premium:	N/A
Agent:	VaGo Assure Inc.
Agent's Email Address:	Commercial VagoAssure <commercial@vagoassure.com>
Agent's Address:	1955 CH. From La Côte-de-Liesse suite 201 Saint-Laurent, Quebec, Canada, H4N 3A8
Name of Insured:	Loto-Québec (Québec crown corporation) and related entities
Insured's Address:	500 Sherbrooke Ouest, Montréal, QC H3A 3G8
Insured's Professional Service:	Province-wide lottery and gaming operations, including major casino and gaming facilities
Risk Classification:	Casinos - Licensed
Website:	https://loteries.lotoquebec.com/
Years in business:	57
Years of experience:	
Payroll:	
Total Turnover - Last Year:	
Total Turnover - Estimate:	\$1,340,000,000.00
Canada Turnover:	\$1,340,000,000.00
USA Turnover:	
Other Territory Turnover:	
Sub-contracted Costs:	
Sub-contracted Work:	None

Additional Risk Information

Key Locations

- Province-wide lottery and gaming operations, including major casino and gaming facilities.
- Revenues (casino operations): ~CAD 1.343B net revenues (2026–2027 estimate).
- Approx. 4,676 employees (3,335 FT / 1,341 PT); payroll ~CAD 219.0M.

- 1 Avenue du Casino, Montréal, QC H3C 4W7
- 1 Boulevard du Casino, Gatineau, QC J8Y 6W3
- 3 Boulevard du Casino, Gatineau, QC J8Y 6W3
- 1900 Rue de l'Hippodrome, Trois-Rivières, QC G8Z 0A3
- 847 Rue Clémenceau, Québec, QC G1C 2K6
- 5645 Avenue Pierre-de-Coubertin, Montréal, QC H1N 1R1

The officers, directors, employees and all other persons in the service of the Company, as well as:

Quebec Lottery Society; Casiloc Inc.;

Société des casinos du Québec inc.; Société des établissements de jeux Québec inc.; Lotim inc.;

Nter Technologies, a subsidiary of Loto-Québec;
9059-3849 Québec inc.;

Social Club of Employees of Casino de Charlevoix Inc.;

Social Club of the Quebec Bingo Society Inc.;

Social Club Société des salons de jeux du Québec inc.; Loto Québec Christmas Social Fund inc.;

Montreal Casino Social Club; Lac Leamy Casino Social Club; Hilton Lac Leamy Social Club;

Social clubs for employees of Loto-Québec and its subsidiaries;

Social club of the Mont-Tremblant Casino.

General Statistics 2026-2027

SPECIAL FEATURES	CASINO MONTREAL	CASINO LAKE-LEAMY	CASINO CHARLEVOIX	CASINO MONT-TREMBLANT	HOTEL	SALON DE GAMES THREE-RIVERS	SALON DE QUEBEC GAMES	TOTAL
Number of visitors per year	4,500,000	2,200,000	714,000	327,000	260,000	340,000	740,000	9,081,000
Average number of visitors per day	12,329	6027	1956	896	712	932	2027	24,879
Number of slot machines	3300	1500	725	420	N/A	N/A	N/A	5945
Number of gaming tables	100	60	9	14	N/A	10	6	193
Number of ALVs	N/A	N/A	N/A	N/A	N/A	300	400	700
Number of rooms	N/A	N/A	N/A	N/A	350	N/A	N/A	350
Number of employees	2450	1390	275	215	325	14	15	4684

PARKING								
Number of seats	4178	4600	N/A	385	Included in Casino Lake Leamy	550	N/A	9713

RESTAURANTS								
Number of restaurants	3	3	1	1	1	1	1	11

BARS								
Number of bars	4	3	1	1	1	1	1	12

PERFORMANCE/CONGRESS HALL								
Number of seats	871	1000	N/A	N/A	1800	N/A	N/A	3671

CHANGING ROOMS								
Number of seats	5400	3425	1400	1160	850	Subcontractor	Subcontractor	12235

SECURITY SERVICE								
Number of employees	230	118	41	29	5	Subcontractor	Subcontractor	423

SPECIAL FEATURES								
Total capacity of people	9150	6500	2760	1660	3100	900	845	24915

AIG Loss Run
Casualty

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Policy : 0066458906-051-000 SOCIETE DES LOTERIES DU QUEBEC 04/01/2023 - 04/01/2024

Report Date / Time: 11/24/2025 10:15 EST
Valuation Date: 11/21/2025
Currency: CAD

Claimant Name Claim #/OneClaim # Loss Date Report Date	Div/H.O. Status Closed Dt	Accident/Loss Description Major Class Code/Description	Ind/BI Paid	Med/PD Paid	Alloc Exp Paid	Adjusting Exp Paid	Total Reserves	Total Recoveries	Total Incurred
LUCIE CHAYKO 509-080775-001/5450915589CA 03/02/2024 05/08/2024	092/180 Open	THE CLAIMANT SLIPPED AND HIT HER HEAD IN EXITING THE INDOOR WHIRLPOOL. 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	4,625.78	5,500.00	-746.41	9,379.37
JULIE TAILLON 509-086575-001/4660308007CA 02/08/2024 01/07/2025	092/180 Open	A SIGN FELL OFF WALL AND HIT THE CLAIMANT'S BACK OF THE HEAD. 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	1,349.46	5.00	.00	1,354.46
RAYMOND COTE 509-080736-001/6571198456CA 10/04/2023 05/07/2024	092/180 Closed 05/26/2025	CLAIMANT TRIPPED AND FELL ON THE 3RD FLOOR OF THE CASINO'S INDOOR PARKING LOT. 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	1,997.73	.00	.00	1,997.73
PIERINA PERRON 509-077448-001/9158457231CA 09/21/2023 01/09/2024	092/180 Open	CLAIMANT SLIPPED AND FELL ON INSURED'S PREMISES SUSTAINING INJURIES. 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	1,482.33	1,000.00	.00	2,482.33
JONATHAN GAGNE 509-074523-001/6745260334CA 09/08/2023 09/19/2023	092/180 Closed 08/22/2024	CLAIMANT DAMAGED HIS VEHICLE IN INSURED'S PARKING LOT. 013 -LIABILITY (OT AUTO) P.D.	.00	.00	.00	1,418.62	.00	.00	1,418.62
BAZINET GILLES 509-078936-001/2800215521CA 08/25/2023 03/01/2024	092/180 Closed 01/27/2025	CUSTOMER HAD A FALL IN THE ENTRANCE OF MEN'S WASHROOM AREA SECTION. 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	2,522.88	.00	.00	2,522.88
PASCALE MARTEL 509-076086-001/9128293386CA 08/16/2023 11/16/2023	092/180 Closed 02/13/2024	CLAIMANT SUFFERED FOOD POISONING FROM MEAL PURCHASED ON INSURED'S PREMISES. 372 -REGULAR PROD BI	.00	.00	.00	1,018.71	.00	.00	1,018.71
SAVITA HARIHAS 509-072556-001/1304267171CA 05/21/2023 06/13/2023	092/180 Closed 08/26/2024	AS A RESULT AFTER EATING HALF OF IT I THEN STARTED TO FEEL UNWELL WHICH MAKES ME VOMIT STRING OF BLOOD IN THE CASINO WASHROOM 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	3,547.19	.00	.00	3,547.19
Pol-Asco-Mod: 0066458906-051-000 Claim Count = 8			.00	.00	.00	17,962.70	6,505.00	-746.41	23,721.29

Claimant Name Claim #/OneClaim # Loss Date Report Date	Div/H.O. Status Closed Dt	Accident/Loss Description Major Class Code/Description	Ind/BI Paid	Med/PD Paid	Alloc Exp Paid	Adjusting Exp Paid	Total Reserves	Total Recoveries	Total Incurred
Mohammed Z. Bedraoui Idris 509-087864-001/2507888298CA 01/27/2025 02/17/2025	092/180 Closed 07/04/2025	CLAIMANT'S FOOT GOT CRUSHED BY A PALLET JIGGER ON INSURED'S PREMISES. 012 -LIABILITY (OT AUTO) B.I.	1,750.00	.00	.00	1,464.30	.00	-1,750.00	1,464.30
SHERRY MICHAUD 509-090318-001/9479321575CA 01/18/2025 05/12/2025	092/180 Open	CLAIMANT HAD BROKEN RIBS BECAUSE OF A FALL WHILE LEAVING THE CASINO. 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	1,296.54	11,019.12	.00	12,315.66
CLAUDETTE MORISSETTE 509-085271-001/5289265310CA 10/12/2024 12/17/2024	092/180 Closed 02/27/2025	WHILE ASCENDING A SLIGHT SLOPE CLAIMANT TRIPPED AN FELL SUSTAINING INJURIES. 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	1,428.84	.00	.00	1,428.84
M A IRENE LAFONTAINE 509-084909-001/8951667245CA 10/05/2024 10/28/2024	092/180 Open	TRIP AND FALL IN THE PARKING LOT. 012 -LIABILITY (OT AUTO) B.I.	5,088.61	.00	.00	3,930.22	15.00	.00	9,033.83
ANNA MULE 509-085269-001/2869238780CA 07/29/2024 12/17/2024	092/180 Closed 03/18/2025	CLAIMANT SLIPPED ON A HAIR CLIP AND FELL SUSTAINING INJURIES. 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	1,523.22	.00	.00	1,523.22
Roland Lagace 509-084542-001/2051967989CA 06/08/2024 10/08/2024	092/180 Closed 06/02/2025	CLAIMANT TRIPPED ON A PIECE OF CONCRETE THAT WAS STICKING OUT ON THE SIDEWALK. 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	2,447.55	.00	.00	2,447.55
STACY MCLAREN 509-082287-001/3540936307CA 04/27/2024 07/10/2024	092/180 Open	A lady fell to the ground and suffered an injury to her shoulders the ambulance has already been contacted. 012 -LIABILITY (OT AUTO) B.I.	.00	.00	.00	7,576.38	75,000.00	.00	
Pol-Asco-Mod: 0066458906-051-001 Claim Count = 7			6,838.61	.00	.00	19,667.05	86,034.12	-1,750.00	
Totals For Policy: 0066458906 Claim Count = 15			.00	.00	.00	37,629.75	92,539.12	-2,496.41	

Int 2 (CGL at Excess) - One

Out

We have claims for the policy in title for the period from 01/04/2014 to 01/04/2023.

Policy No	Claim Number	Accident Description	Loss Date	Reported Date	Claim Closed Date	Loss Incurred
0047281926	000-01-593212	Unsafe Premises/ Lieux Non Sécuritaires	2022-04-09	2022-05-06	2023-01-09	\$0.00
0047281926	000-01-842619	Slip And Fall/ Glissement Et Chute	2022-04-12	2024-05-08	2024-10-04	\$0.00
0047281926	000-01-593225	Bodily Injury Other/ Dommages Corporels - Autre	2022-04-16	2022-05-06	2022-11-16	\$760.00
0047281926	000-01-665207	Slip And Fall/ Glissement Et Chute	2022-07-27	2022-10-31	2023-10-05	\$0.00
0047281926	000-01-816406	Bodily Injury Other/ Dommages Corporels - Autre	2022-08-09	2024-02-01	2024-10-08	\$0.00
0047281926	000-01-652735	Property Damage - Other/ Dommages Matériels - Autre	2022-08-29	2022-09-28	2022-11-02	\$0.00
0047281926	000-01-842625	Slip And Fall/ Glissement Et Chute	2022-10-07	2024-05-08	2024-10-04	\$0.00
0047281926	000-01-698326	Slip And Fall/ Glissement Et Chute	2022-11-29	2023-02-03	2024-10-01	\$0.00
0047281926	000-01-725769	Bodily Injury Other/ Dommages Corporels - Autre	2023-03-20	2023-04-27	2023-06-01	\$0.00
0047281926	000-01-730318	Bodily Injury Other/ Dommages Corporels - Autre	2023-03-23	2023-05-11	2024-06-20	\$800.00
0047281926	000-01-508926	Slip And Fall/ Glissement Et Chute	2021-08-29	2021-10-08	2022-01-17	\$1 728.00
0047281926	000-01-568853	Slip And Fall/ Glissement Et Chute	2021-11-24	2022-03-02	2022-10-17	\$2 436.00
0047281926	000-01-582931	Bodily Injury Other/ Dommages Corporels - Autre	2022-02-28	2022-04-07	2022-11-01	\$2 172.00
0047281926	000-01-592081	Slip And Fall/ Glissement Et Chute	2022-03-18	2022-05-03	2023-01-09	\$0.00
0047281926	000-01-367999	Slip And Fall/ Glissement Et Chute	2020-08-22	2020-09-18	2021-12-01	\$1 945.00
0047281926	000-01-264317	Bodily Injury Other/ Dommages Corporels - Autre	2019-05-06	2019-12-30	2020-09-29	\$1 020.00
0047281926	000-01-157710	Slip And Fall/ Glissement Et Chute	2019-05-11	2019-05-15	2019-10-01	\$1 332.00
0047281926	000-01-250034	Unsafe Premises/ Lieux Non Sécuritaires	2019-06-12	2019-11-29	2024-08-19	\$11 033.91
0047281926	000-01-213856	Unsafe Premises/ Lieux Non Sécuritaires	2019-06-22	2019-09-18	2020-12-10	\$2 351.00
0047281926	000-01-637890	Bodily Injury Other/ Dommages Corporels - Autre	2019-09-03	2022-08-22	2022-11-01	\$0.00
0047281926	000-01-276136	Unsafe Premises/ Lieux Non Sécuritaires	2019-09-17	2020-01-23	2023-08-08	\$1 500.00
0047281926	000-01-229062	Unsafe Premises/ Lieux Non Sécuritaires	2019-10-16	2019-10-18	2021-11-01	\$3 804.00
0047281926	000-01-249965	Bodily Injury Other/ Dommages Corporels - Autre	2019-11-24	2019-11-28	2021-03-03	\$2 304.00
0047281926	000-01-490355	Bodily Injury Other/ Dommages Corporels - Autre	2019-12-24	2021-08-26	2022-02-14	\$1 704.00
0047281926	000-01-367045	Slip And Fall/ Glissement Et Chute	2020-01-05	2020-01-05	2021-11-03	\$2 112.00
0047281926	0024848424	Bodily Injury - Other	2018-05-26	2018-10-01	2019-06-05	\$8 549.00
0047281926	0024433235	Slip & Fall	2018-05-31	2018-06-26	2022-05-16	\$3 023.70
0047281926	0024486883	Bodily Injury - Other	2018-07-03	2018-07-09	2019-03-05	\$2 310.00
0047281926	0024485102	Bodily Injury - Other	2018-07-05	2018-07-09	2018-12-10	\$2 992.00
0047281926	0024619153	Slip & Fall	2018-07-29	2018-08-07	2024-01-15	\$3 870.75
0047281926	000-01-214967	Bodily Injury Other/ Dommages Corporels - Autre	2018-08-05	2019-09-20	2020-04-13	\$1 416.00
0047281926	0024676096	Slip & Fall	2018-08-08	2018-08-20	2020-11-09	\$3 426.00
0047281926	0025015002	Other Cause Of Loss	2018-09-21	2018-11-07	2020-04-28	\$2 620.00

LLOYD'S**COMMERCIAL GENERAL LIABILITY INSURANCE**

Effected with certain Lloyd's Underwriters ("**the Insurer**") through Lloyd's Approved Coverholder ("the Coverholder") **AssuredPartners London**, The Walbrook Building, 25 Walbrook, London, EC4N 8AW

QUOTE - NO COVER GIVEN - TERMS OPEN 30 DAYS**THIS POLICY CONTAINS A CLAUSE WHICH MAY LIMIT THE AMOUNT PAYABLE****DECLARATION****UMR:** B1525**Policy Number:****Intermediary:** VaGo Assure Inc.**Intermediary Address:** 1955 CH. From La Côte-de-Liesse suite 201 Saint-Laurent, Quebec, Canada, H4N 3A8**Type:** COMMERCIAL GENERAL LIABILITY INSURANCE**Insured's Name:** Loto-Québec (Québec crown corporation) and related entities

and/or their subsidiary, affiliated and/or controlled companies including co-ventures of a joint venture for which the first named insured is operator, and/or others for which the first named insurable interest, and/or have agreed to insure, all as now exists or may hereafter be constituted or acquired

Insured's Address: 500 Sherbrooke Ouest, Montréal, QC H3A 3G8**Application Form Date:** N/A**Policy Period****From:** 01 April 2026**To:** 01 April 2027

both days as at local standard time at the address of the Insured.

Interest: As per Policy Wording**Professional Services:** Province-wide lottery and gaming operations, including major casino and gaming facilities**Territory:** Canada**Choice of Law & Jurisdiction:** This insurance shall be governed by and construed in accordance with the law of Canada and each party agrees to submit to the exclusive jurisdiction of the Canada.**Slip Leader:** N/A - NO COVER GIVEN

TERMS & CONDITIONS

Wording: APL Quebec CGL Occ V1 (L1A)

Limits (CAD):

\$5,000,000	CGL – Any One Occurrence & In the Annual Aggregate
\$5,000,000	Bodily Injury / Property Damage – Any One Occurrence & In the Annual Aggregate
\$5,000,000	Products and Completed Operations – Any One Occurrence & In the Annual Aggregate
\$100,000	Medical Expenses – Per Person / Per Accident
\$5,000,000	Tenants Legal Liability – Any One Occurrence & In the Annual Aggregate
\$5,000,000	Non-Owned Auto – Any One Occurrence & In the Annual Aggregate
\$100,000	Damage to Hired Auto – Any One Occurrence & In the Annual Aggregate
\$5,000,000	Personal / Advertising Liability – Any One Occurrence & In the Annual Aggregate
\$2,000,000	Forest Fire Fighting Expense – Any One Occurrence & In the Annual Aggregate
\$5,000,000	Employee Benefits – Any One Occurrence & In the Annual Aggregate
\$1,000,000	S&A Pollution (240 Hours) – Any One Occurrence & In the Annual Aggregate
\$5,000,000	Contingent Employers Liability – Any One Occurrence & In the Annual Aggregate
\$250,000	Innkeepers Liability - Any One Occurrence & In the Annual Aggregate

Deductibles (CAD):

\$25,000	Each and every claim in respect of Bodily Injury Including Costs
\$25,000	Each and every claim in respect of Property Damage Including Costs
\$500	Each and every claim in respect of Medical Expenses Including Costs
\$1,000	Each and every claim in respect of Tenants Legal Liability Including Costs
\$1,000	Each and every claim in respect of Non-Owned Auto Including Costs
\$1,000	Each and every claim in respect of Damage to Hired Auto Including Costs
\$1,000	Each and every claim in respect of Personal / Advertising Liability Including Costs
\$2,500	Each and every claim in respect of Forest Fire Fighting Expenses Including Costs
\$1,000	Each and every claim in respect of Employee Benefits Including Costs
\$2,500	Each and every claim in respect of S&A Pollution (240 Hours) Including Costs
\$1,000	Each and every claim in respect of Contingent Employers Liability Including Costs
\$2,500	Each and every claim in respect of Innkeepers Liability Including Costs

Conditions:

LSW1549C Identification of insurer / Action against insurer
 Excluding USA
 Employee Benefits Extension
 S&A Pollution (240 Hours)
 Contingent Employers Liability
 Innkeepers Liability Extension
 Excluding E&O/PI
 Gambling Exclusion
 Excluding Forcible Ejection

Subjectivities: If not already provided upon quotation - please provide a signed & dated application form (dated within 30 days of proposed policy inception date). If not provided within 14 days of order noted, underwriters have the right to cancel ab initio.

If quote is required but binding confirmation has been sent to AssuredPartners London after the proposed policy inception date, a signed and dated NCD (No Claims Declaration) must be provided.

For Insureds domiciled in Quebec, terms are subject to sight and acceptance of a satisfactory Bill 96 attestation signed & dated by the Insured, prior to binding.

Premium (CAD): \$150,000.00

Minimum Retained: 25%

Adjustable: N/A

Premium Payment Terms: LSW 3001 90 day Premium Payment Warranty

Taxes payable by Insured and administered by Insurers: None Applicable

Recording, Transmitting & Storing Information: Where AssuredPartners London maintains risk and claim data/information/documents
AssuredPartners London may hold data/information/documents electronically

Insurer Contract Documentation: This document details the contract terms entered into by the insurer(s) and constitutes the contract document.

In respect of Lloyd's Syndicates:

XIS to sign Lloyd's policy, based on Form J (A) NMA2421
Incorporating NMA2419 Lines Clause
Production of Co-insurance Policies to follow suit accordingly

In respect of Bureau Insurance Companies:

XIS to sign Company Policy, based on Policy Form IIC3
Incorporating NMA2419 Lines Clause (amended by the deletion of the word "table" and its replacement with words "schedule of Companies proportions")
Production of Co-Insurance Policies to follow suit accordingly.

In respect of Non-Bureau Companies:

Each Non-Bureau Insurance Company to sign Company Policy,
Based on Policy form Companies Collective Policy (CP2)

Incorporating NMA2419 Lines Clause (amended by the deletion of the word "table" and its replacement with the words "schedule of Companies proportions")

Signing Provisions:

In the event that the written lines hereon exceed 100% of the order, any lines written "to stand" will be allocated in full and all other lines will be signed down in equal proportions so that the aggregate signed lines equal to 100% of the order without further agreement of any of the (re) insurers. However:

a) in the event that the placement of the order is not completed by the commencement date of the period of insurance then all lines written by that date will be signed in full;

b) the signed lines resulting from the application of the above provisions can be varied, before or after the commencement date of the period of insurance, by the documented agreement of the (re)insured and all (re)insurers whose lines are to be varied. The variation to the contracts will take effect only when all such (re)insurers have agreed, with the resulting variation in signed lines commencing from the date set out in that agreement.

The insurance contract consists of this Declaration page as well as all coverage wordings, riders, or endorsements that are attached hereto.

IDENTIFICATION OF INSURER / ACTION AGAINST INSURER - LSW1549C

This insurance has been effected in accordance with the authorization granted to the Coverholder by the Underwriting Members of the Syndicates whose definitive numbers and proportion are shown in the Table attached to the Agreement No:

B1525

(hereinafter referred to as "the Underwriters"). The Underwriters shall be liable hereunder each for his own part and not one for another in proportion to the several sums that each of them has subscribed to the said Agreement.

In any action to enforce the obligations of the Underwriters they can be designated or named as "Lloyd's Underwriters" and such designation shall be binding on the Underwriters as if they had each been individually named as defendant. Service of such proceedings may validly be made upon the Attorney In Fact in Canada for Lloyd's Underwriters, whose address for such service is Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2.

NOTICE

Any notice to the Underwriters may be validly given to:

VaGo Assure Inc.
1955 CH. From La Côte-de-Liesse suite 201 Saint-Laurent, Quebec, Canada, H4N 3A8

In witness whereof this policy has been signed in London, England as authorized by the Underwriters, by AssuredPartners London

Per: Lloyd Bender

Dated: 30 January 2026

The Insured is requested to read this policy, and if incorrect, return it immediately for alteration.

In the event of an occurrence likely to result in a claim under this insurance, immediate notice should be given to the Canadian licenced intermediary whose name and address appear above. All inquiries and disputes are also to be addressed to this intermediary.

Whereas Lloyd's Underwriters have been granted an order to insure in Canada risks under the Insurance companies Act (Canada) and are registered in all provinces and territories in Canada to carry on insurance business under the laws of these jurisdictions or to transact insurance in these jurisdictions.

And whereas applicants for insurance coverage in respect of risks located in Canada and Canadian Cedants wish that Lloyd's insurance and reinsurance coverage be provided in a manner that requires Lloyd's Underwriters to vest assets in trust in respect of their risks pursuant to the Insurance Companies Act (Canada);

- a) This contract shall be in force and shall be the governing contract pending the decision by Lloyd's Underwriters' attorney and chief agent in Canada (the "AIF") to confirm coverage in accordance with both the terms and conditions set out in this contract and applicable Canadian law;
- b) The AIF shall confirm Lloyd's Underwriters' coverage by signing in Canada a policy that will contain the terms and conditions set out in this contract (the "Canadian Policy"), and by communicating from Canada the issuance of that policy to the policyholder or his broker;
- c) This contract shall cease to have effect upon the communication by the AIF from Canada of the Canadian Policy to the policyholder or his broker, and the Canadian Policy will replace and supersede this contract.

USA EXPOSURE EXCLUSION

This policy excludes liability for or arising out of any activity, operation, visits to, exports of goods or other exposure within the United States of America.

Subject otherwise to the terms, Conditions and Exclusions of the Policy.

EMPLOYEE BENEFITS LIABILITY INSURANCE

1. Subject to the terms and provisions of the Policy to which this Endorsement is attached, the Insurer agrees to pay on behalf of the Insured all sums which the Insured shall become legally obligated to pay any employee or former employee or the heirs, beneficiaries or legal representatives of either as damage arising from any act of negligence, error, mistake or omission of the Insured or others for whom the Insured is legally responsible in the administration of employee benefit programs of the Insured, provided any claim made to recover therefore is brought within the period this insurance is in effect.

2. The following definitions apply in connection with the insurance afforded by this Endorsement:

(a) **INSURED:** The unqualified word "Insured" includes the Named Insured and also includes any executive officer, director or stockholder thereof while acting within the scope of his duties as such; any employee authorized to act in the administration of the Insured's employee benefit programs while so acting and, if the Named Insured is a partnership, any partner therein but only with respect to his liability as such.

(b) **EMPLOYEE BENEFIT PROGRAMS:** The term "Employee Benefit Programs" shall mean group life insurance, group health insurance, profit sharing plans, pension plans, employee stock subscription plans, worker's compensation insurance, supplementary unemployment benefits, government unemployment compensation insurance, medical plans, dental plans, optical plans, social insurance and disability benefits insurance.

(c) **ADMINISTRATION:** The unqualified word "Administration", wherever used, shall mean the following, provided the same are authorized by the Named Insured:

- (i) Counselling employees with respect to employee benefit programs;
- (ii) Interpretations relative to employee benefit programs;
- (iii) Record-keeping in connection with employee benefit programs;
- (iv) Enrollment, termination or cancellation of employees under employee benefit programs.

3. This insurance afforded by this Endorsement does not apply:

- (a) to any dishonest, fraudulent or criminal act or to libel, slander, discrimination or humiliation;
- (b) to bodily injury to, or sickness, disease or death, of any person, or to injury to or destruction of any tangible property, including the loss of use thereof;
- (c) to any claim for failure of performance of contract by any Insurer;
- (d) to any claim based upon the Insured's deliberate failure to comply with any worker's compensation, unemployment compensation, government pension plans, social security or disability benefits law or similar law;
- (e) to any claim based upon:
 - (i) failure of securities to perform as represented by an Insured;
 - (ii) advice given by an Insured in connection with participation or non-participation in stock subscription plans;
 - (iii) failure to comply with the requirements of the Pension Reform Act of 1974 (Employee Retirement Income Security Act of 1974) applicable in the United States of America.

4. The Limit of Liability as stated in the schedule hereof as applicable to "each claim" is the Limit of the Insurer's Liability for all damages incurred as a result of any one claim insured hereunder but each claim made shall be subject to the deductible amount set forth in the schedule and the Insurer shall be liable only for the difference between such deductible amount and the Limit of Liability for "each claim"; the Limit of such Liability stated in the schedule as "aggregate" is subject to the above provision respecting each claim, the total Limit of the Insurer's Liability for all damages insured hereunder.

The aggregate Limit of Liability shall apply separately to each annual period this insurance is in force.

Any act or omission on the part of one or another of the Insureds under this Policy shall not prejudice the rights or interests of any other Insured. The insurance afforded by this Endorsement, subject to the Limits of Liability stated herein shall apply to each Insured in the same manner and to the same extent as if a separate policy had been issued to each.

SUDDEN AND ACCIDENTAL POLLUTION LIABILITY (240 HOURS) EXTENSION

This Endorsement modifies Coverage Sections A, B, C & D of the Policy. Coverage afforded by this endorsement shall be limited to the amount shown on the declaration page of the policy to which this endorsement is attached.

Section III - Common Exclusions Applying To All Coverage Sections – Clause 4 is deleted in its entirety in respect of Coverage Sections A, B, C & D only and replaced by the following:

4. Pollution Liability

a) "Bodily injury" or "property damage" arising out of the actual, alleged, potential or threatened spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of Pollutants:

1. At or from any premises, site or location which is or was at any time, owned or occupied by, or rented or loaned to an Insured;
2. At or from any premises, site or location which is or was at any time, used by or for any Insured or others for the handling, storage, disposal, processing or treatment of waste;
3. Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for any Insured or any person or organization for whom the Insured may be legally responsible; or
4. At or from any premises, site or location on which any Insured or any contractors or subcontractors working directly or indirectly on any Insured's behalf are performing operations:
 - a) if the Pollutants are brought on or to the premises, site or location in connection with such operations by such Insured, contractor or subcontractor; or
 - b) if the operations are to test for, monitor, clean-up, remove, contain, treat, detoxify, decontaminate, stabilize, remediate or neutralize, or in any way respond to, or assess the effect of Pollutants.

Sub-paragraphs 1) and 4)a) of paragraph a. of this exclusion do not apply to "bodily injury" or "property damage" caused by:

- (i). heat, smoke or fumes from a "hostile fire"; or
- (ii). an unexpected and unintentional spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of Pollutants provided such discharge, emission, dispersal, seepage, leakage, migration, release or escape of Pollutants:

1. results in the injurious presence of Pollutants in or upon land, the atmosphere, drainage or sewage system, watercourse or body of water; and
2. if detected within 240 (two hundred and forty) hours after the commencement of the spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape; and
3. as a condition precedent to coverage, is reported to us within 240 (two hundred and forty) hours of being detected or known; and
4. does not occur in a quantity or with a quality that is routine or usual to the business of the Insured.

b) Any loss, cost or expense arising out of any request, demand or order that any Insured or others test for, monitor, clean-up, remove, contain, treat, detoxify, decontaminate, stabilize, remediate or neutralize or in any way respond to, or assess the effect of Pollutants unless such loss, cost or expense is consequent upon "bodily injury" or "property damage" covered by this Policy.

All other terms and conditions of this Policy remain unchanged.

CONTINGENT EMPLOYERS EXTENSION

This extension modifies coverage provided by form L1A, but only if indicated on the Declarations Page for the form.

It is agreed that:

Exclusion D (1) (a) and (1) (b) are deleted and the following substituted therefor;

D. Bodily injury to any employee of the Insured arising out of and in the course of his employment by the Insured, but this exclusion does not apply to:

(i) liability assumed by the Insured under an incidental contract, or

(ii) employees on whose behalf contributions are made by or required to be made by the Insured under the provisions of any workers' compensation law.

All other terms and conditions of this policy remain unchanged.

INNKEEPERS LIABILITY EXTENSION

It is hereby agreed that Property Damage Liability is extended to include all sums which the Insured shall become legally obligated to pay by reason of liability for damages because of injury to, destruction of or loss of property belonging to a guest at the premises while such property is within the premises, or in the possession of the Insured.

It is further agreed that with respect to this extension only, the limit of the Insurers liability for all damages because of loss of property of any one guest is \$10,000, the total limit of the Insurer's liability for all damages because of loss of property during the Period of Coverage is subject to the above provision respecting each guest subject an annual aggregate as stated on the declarations for all guests for any one claim or series of claims. Any payment made by the Insurer on account of such damages shall reduce the limit by the amount so paid.

It is agreed that Exclusion 9(a) Exclusions is deleted in respect to this extension only and the following Exclusions are substituted therefor;

(i) any liability assumed by the Insured under any express contract or agreement other than a written agreement by the Insured with a guest before the occurrence of a loss increasing the limit only of the Insured's statutory liability to a total amount not in excess as stated on the declarations

(ii) any loss as to which the Insured has released any other person or organization from its liability legal liability.

(iii) any loss caused by the spilling, upsetting, or leaking of any food or liquid;

(iv) any liability for damage to or destruction of including loss of use of any vehicle or its equipment, accessories, appurtenances, or any property contained therein;

(v) any liability for damage to or destruction of including loss of use of any property in the custody or possession of the Insured for laundering or cleaning other than the Insureds legal liability for loss or damage by fire;

(vi) any liability for damage to or destruction of including loss of use of any articles carried or held by a guest as samples or for sale or for delivery after sale.

It is further agreed that for each and every claim arising out of the above, the sum as stated on the declarations shall be deducted from the total of all claims, legal fees, and adjusting expenses any one occurrence because of injury to, destruction of or loss of property belonging to a guest and the Insurer shall be liable only for the difference between such deductible amount and the Limit of Liability in this endorsement. The Insurer may pay any part of all of the deductible amount to effect settlement of any claim or suit and upon notification of the action taken, the Named Insured shall promptly reimburse the Insurer for such part of the deductible amount paid by the Insurer.

ERRORS AND OMISSIONS EXCLUSION

It is agreed that this insurance does not apply to liability arising out of any claim made against you caused by or alleged to have been caused by any negligent act, error, or omission of yours or any other person for whose acts you are legally liable for in the conduct of your consulting business.

All other terms and conditions of this policy remain unchanged.

GAMBLING EXCLUSION

It is hereby understood and agreed that the insurance provided by the present policy does not apply to or provide coverage for any "personal injury", "property damage", "advertising liability" or any other damage, loss or cost of any kind whatsoever caused by or resulting from any of the following circumstances regardless of any other occurrence, cause or event, which have contributed concurrently or in any way from losses resulting from:

- a) Any Failure of any insured to bar or prohibit any casino patron from continuing to gamble;
- b) Any allegations that a casino patron sustained loss by reason of addiction to or otherwise being unable to terminate gambling activity;
- c) The failure of any insured to warn a casino patron of the dangers potentially arising from the gambling activity;and
- d) Any insured encouraging, by any means, a casino patron to engage in gambling activity .

ALL OTHER TERMS & CONDITIONS REMAIN UNCHANGED.

FORCIBLE EJECTION EXCLUSION

It is hereby agreed that the following is added to the EXCLUSIONS:

This policy does not apply to claims arising out of:

- a) the ejection of persons;
- b) the refusal of entry to the premises; or
- c) the refusal of service.



**AssuredPartners – Quebec CGL
Occurrence Wording
(L1A)**

1) Main Body Wording

L1A

2) Standard Lloyds & London Market Conditions

Premium Payment Clause – LSW3001
Service of Suit Clause (CANADA) (Action against Insurer) - LMA5028B
Intention For AIF To Bind Clause - LMA5180
Lloyd's Underwriters' Policyholders' Complaint Protocol - LSW1542F
Protocole Relatif Aux Plaintes De Titulaires De Polices Du Lloyd's - LSW1542F-16
Privacy: Notice Concerning Personal Information - LSW1543E
Vie Privée: Avis Concernant Les Renseignements Personnels - LSW1543E-16
Code Of Consumer Rights And Responsibilities - LSW1565C
Code Des Droits Et Responsabilités Du Consommateur - LSW1565C-16
Several Liability Notice - LSW1001 (Insurance)
Communicable Disease Exclusion - LMA5396
Sanction Limitation Clause - LMA 3100A
Line Clause - NMA2419
Cyber and Data Exclusion - LMA5528A

3) Standard Endorsements

LE8a Advertising Liability Extension
Forest Fire Fighting Expense Endorsement
Statutory Conditions (Applicable to British Columbia, Alberta and Manitoba)
Blanket Additional Insured
Blanket Waiver of Subrogation
Sub-Contractor Warranty
Minimum Earned Premium / Commission Clause
Fraudulent Claim Clause
Short Rate Cancellation Table Clause
Cross Liability Clause
Standard Non-Owned Automobile Policy (Q.P.F.6)
Q.E.F. No. 6-96 - Contractual Liability Endorsement
Q.E.F. No. 6-99 - Excluding Long Term Leased Vehicle Endorsement
Q.E.F. NO. 6-94 - Legal Liability For Damage To Hired Automobiles Endorsement

Commercial General Liability (Occurrence Form) L1a

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under Paragraph 3. of Section II – Who is an Insured. The words "we", "us" and "our" refer to the company providing this insurance.

The word "insured" means any person or organization qualifying as such under Section II – Who Is An Insured. Other words and phrases that appear in quotation marks have special meaning. Refer to Section V –Definitions.

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

SECTION I – COVERAGES**COVERAGE A. BODILY INJURY and PROPERTY DAMAGE LIABILITY****1. Insuring Agreement**

- a. We will pay those sums that the insured becomes legally obligated to pay as "compensatory damages" because of "bodily injury" or "property damage" to which this insurance applies. We will have the right and duty to defend the insured against any "action" seeking those "compensatory damages". However, we will have no duty to defend the insured against any "action" seeking "compensatory damages" for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "action" that may result. But:
 - (1) The amount we will pay for "compensatory damages" is limited as described in Section III – Limits Of Insurance; and
 - (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A, B or D or medical expenses under Coverage C. No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A, B and D.
- b. This insurance applies to "bodily injury" and "property damage" only if:
 - (1) The "bodily injury" or "property damage" is caused by an "occurrence" that takes place in the "coverage territory"; and
 - (2) The "bodily injury" or "property damage" occurs during the policy period; and
 - (3) Prior to the policy period, no insured listed under Paragraph 1. of Section II – Who Is An Insured and no "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew that the "bodily injury" or "property damage" had occurred, in whole or in part. If such a listed insured or authorized "employee" knew, prior to the policy period, that the "bodily injury" or "property damage" occurred, then any continuation, change or resumption of such "bodily injury" or "property damage" during or after the policy period will be deemed to have been known prior to the policy period.
- c. "Bodily injury" or "property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim, includes any continuation, change or resumption of that "bodily injury" or "property damage" after the end of the policy period.
- d. "Bodily injury" or "property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim:
 - (1) Reports all, or any part, of the "bodily injury" or "property damage" to us or any other insurer;
 - (2) Receives a written or verbal demand or claim for "compensatory damages" because of the "bodily injury" or "property damage"; or
 - (3) Becomes aware by any other means that "bodily injury" or "property damage" has occurred or has begun to occur.
- e. "Compensatory damages" because of "bodily injury" include "compensatory damages" claimed by any person or organization for care, loss of services or death resulting at any time from the "bodily injury".

2. Exclusions

This insurance does not apply to:

- a. Expected or Intended Injury
"Bodily injury" or "property damage" expected or intended from the standpoint of the insured. This exclusion does not apply to "bodily injury" resulting from the use of reasonable force to protect persons or property.
- b. Contractual Liability
"Bodily injury" or "property damage" for which the insured is obligated to pay "compensatory damages" by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for "compensatory damages":

- (1) That the insured would have in the absence of the contract or agreement; or
- (2) Assumed in a contract or agreement that is an "insured contract", provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an "insured contract", reasonable legal fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be "compensatory damages" because of "bodily injury" or "property damage", provided:
 - (a) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and
 - (b) Such legal fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which "compensatory damages" to which this insurance applies are alleged.

c. Workers' Compensation and Similar Laws

Any obligation of the insured under a workers' compensation, disability benefits or unemployment or employment compensation law or any similar law.

d. Employer's Liability

"Bodily injury" to:

- (1) An "employee" of the insured arising out of and in the course of:
 - (a) Employment by the insured; or
 - (b) Performing duties related to the conduct of the insured's business; or
- (2) The spouse, child, parent, brother or sister of that "employee" as a consequence of Paragraph 2. d. (1) above.

This exclusion applies:

- (i) Whether the insured may be liable as an employer or in any other capacity; and
- (ii) To any obligation to share "compensatory damages" with or repay someone else who must pay "compensatory damages" because of the injury.

This exclusion does not apply to:

- (a) Liability assumed by the insured under an "insured contract"; or
- (b) A claim made or an "action" brought by a Canadian resident "employee" on whose behalf contributions are made by or required to be made by you under the provisions of any Canadian provincial or territorial workers' compensation law, if cover or benefits have been denied by any Canadian Workers' Compensation Authority.

e. Aircraft or Watercraft

"Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others by or on behalf of any insured of:

- (i) Any aircraft, air cushion vehicle or watercraft owned or operated by or rented or loaned to any insured other than arising from the ownership and or operation of UAV's as already disclosed to Underwriters; or
- (ii) Any premises for the purpose of an airport or aircraft landing area and all operations necessary or incidental thereto.

Use includes operation and "loading or unloading".

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage" involved the ownership, maintenance, use or entrustment to others of any aircraft or watercraft that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to:

- (1) A watercraft while ashore on premises you own or rent;
- (2) A watercraft you do not own that is:
 - (a) Less than 8 metres long; and
 - (b) Not being used to carry persons or property for a charge;
- (3) "Bodily injury" to an "employee" of the insured on whose behalf contributions are made by or required to be made by the insured under the provisions of any Canadian provincial or territorial workers' compensation law, if the "bodily injury" results from an "occurrence" involving watercraft.

f. Automobile

"Bodily injury" or "property damage" arising directly or indirectly, in whole or in part, out of the ownership, maintenance, use or entrustment to others of any "automobile" owned or operated by or rented or loaned to any insured. Use includes operation and "loading or unloading". This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury" or "property damage".

This exclusion applies to any motorized snow vehicle or its trailers and any vehicle while being used in any speed or demolition contest or in any stunting activity or in practice or preparation for any such contest or activity.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property

damage" involved the ownership, maintenance, use or entrustment to others of any "automobile" that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to:

- (1) "Bodily injury" to an "employee" of the insured on whose behalf contributions are made by or required to be made by the insured under the provisions of any Canadian provincial or territorial workers' compensation law.
- (2) "Bodily injury" or "property damage" arising out of a defective condition in, or improper maintenance of, any "automobile" owned by the Insured while leased to others for a period of 30 days or more provided the lessee is obligated under contract to ensure that the "automobile" is insured.
- (3) the ownership, use or operation of machinery, apparatus or equipment mounted on or attached to any vehicle while at the site of the use or operation of such equipment, but this exception does not apply when such equipment is used for the purpose of "loading or unloading".

g. Damage To Property

"Property damage" to:

- (1) Property you own, rent, or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another's property;
- (2) Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;
- (3) Property loaned to you;
- (4) Personal property in your care, custody or control;
- (5) That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations;
or
- (6) That particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraph (2) of this exclusion does not apply if the premises are "your work" and were never occupied, rented or held for rental by you.

Paragraphs (3), (4), (5) and (6) of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph (6) of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

h. Damage To Your Product

"Property damage" to "your product" arising out of it or any part of it.

i. Damage To Your Work

"Property damage" to "your work" arising out of it or any part of it and included in the "products-completed operations hazard".

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

j. Damage To Impaired Property or Property Not Physically Injured

"Property damage" to "impaired property" or property that has not been physically injured, arising out of:

- (1) A defect, deficiency, inadequacy or dangerous condition in "your product" or "your work"; or
- (2) A delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to "your product" or "your work" after it has been put to its intended use.

k. Recall of Products, Work or Impaired Property

"Compensatory damages" claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

- (1) "Your product";
- (2) "Your work"; or
- (3) "Impaired property";

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

l. Electronic Data

"Compensatory damages" arising out of the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate electronic data.

m. Personal and Advertising Injury

"Bodily injury" arising out of "personal and advertising injury".

n. Professional Services

"Bodily injury" (other than "incidental medical malpractice injury"), or "property damage" due to the rendering of or failure to render by you or on your behalf of any "professional services" for others, or any error or omission, malpractice or mistake in providing those services.

o. Abuse

- a. Claims or "actions" arising directly or indirectly from "abuse" committed or alleged to have been committed by an insured, including the transmission of disease arising out of any act of "abuse".
- b. Claims or "actions" based on your practices of "employee" hiring, acceptance of "volunteer workers" or supervision or retention of any person alleged to have committed "abuse".
- c. Claims or "actions" alleging knowledge by an insured of, or failure to report, the alleged "abuse" to the appropriate authority(ies).
- p. Asbestos – see Common Exclusions
- q. Fungi or Spores – see Common Exclusions
- r. Nuclear– see Common Exclusions
- s. Pollution – see Common Exclusions
- t. Terrorism – see Common Exclusions
- u. War Risks – see Common Exclusions

COVERAGE B. PERSONAL and ADVERTISING INJURY LIABILITY

1. Insuring Agreement
 - a. We will pay those sums that the insured becomes legally obligated to pay as "compensatory damages" because of "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "action" seeking those "compensatory damages". However, we will have no duty to defend the insured against any "action" seeking "compensatory damages" for "personal and advertising injury" to which this insurance does not apply. We may, at our discretion, investigate any offense and settle any claim or "action" that may result. But:
 - (1) The amount we will pay for "compensatory damages" is limited as described in Section III – Limits Of Insurance; and
 - (2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A, B or D or medical expenses under Coverage C.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A, B and D.
 - b. This insurance applies to "personal and advertising injury" caused by an offense arising out of your business but only if the offense was committed in the "coverage territory" during the policy period.
2. Exclusions

This insurance does not apply to:

 - a. Knowing Violation Of Rights Of Another
"Personal and advertising injury" caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict "personal and advertising injury".
 - b. Material Published With Knowledge Of Falsity
"Personal and advertising injury" arising out of oral or written publication of material, if done by or at the direction of the insured with knowledge of its falsity.
 - c. Material Published Prior To Policy Period
"Personal and advertising injury" arising out of oral or written publication of material whose first publication took place before the beginning of the policy period.
 - d. Criminal Acts
"Personal and advertising injury" arising out of a criminal act committed by or at the direction of the insured.
 - e. Contractual Liability
"Personal and advertising injury" for which the insured has assumed liability in a contract or agreement. This exclusion does not apply to liability for "compensatory damages" that the insured would have in the absence of the contract or agreement.
 - f. Breach Of Contract
"Personal and advertising injury" arising out of a breach of contract, except an implied contract to use another's advertising idea in your "advertisement".
 - g. Quality Or Performance Of Goods – Failure To Conform To Statements
"Personal and advertising injury" arising out of the failure of goods, products or services to conform with any statement of quality or performance made in your "advertisement".
 - h. Wrong Description Of Prices
"Personal and advertising injury" arising out of the wrong description of the price of goods, products or services stated in your "advertisement".
 - i. Infringement Of Copyright, Patent, Trademark or Trade Secret
"Personal and advertising injury" arising out of the infringement of copyright, patent, trademark, trade secret or other intellectual property rights.
However, this exclusion does not apply to infringement, in your "advertisement", of copyright, trade dress or slogan.
 - j. Insureds In Media and Internet Type Businesses
"Personal and advertising injury" committed by an insured whose business is:

- (1) Advertising, broadcasting, publishing or telecasting;
- (2) Designing or determining content of web-sites for others; or
- (3) An Internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs 21. a., b. and c. of "personal and advertising injury" under the Definitions Section.

For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for you or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

- k. Electronic Chatrooms or Bulletin Boards
"Personal and advertising injury" arising out of an electronic chatroom or bulletin board the insured hosts, owns, or over which the insured exercises control.
- l. Unauthorized Use Of Another's Name or Product
"Personal and advertising injury" arising out of the unauthorized use of another's name or product in your email address, domain name or metatag, or any other similar tactics to mislead another's potential customers.
- m. Asbestos – see Common Exclusions
- n. Fungi or Spores – see Common Exclusions
- o. Nuclear – see Common Exclusions
- p. Pollution – see Common Exclusions
- q. Terrorism – see Common Exclusions
- r. War Risks – see Common Exclusions

COVERAGE C. MEDICAL PAYMENTS

1. Insuring Agreement

- a. We will pay medical expenses as described below for "bodily injury" caused by an accident:
 - (1) On premises you own or rent;
 - (2) On ways next to premises you own or rent; or
 - (3) Because of your operations;
 provided that:
 - (1) The accident takes place in the "coverage territory" and during the policy period;
 - (2) The expenses are incurred and reported to us within one year of the date of the accident; and
 - (3) The injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.
- b. We will make these payments regardless of fault. These payments will not exceed the applicable limit of insurance as described in Section III – Limits of Insurance. We will pay reasonable expenses for:
 - (1) First aid administered at the time of an accident;
 - (2) Necessary medical, surgical, x-ray and dental services, including prosthetic devices; and
 - (3) Necessary ambulance, hospital, professional nursing and funeral services.

2. Exclusions

We will not pay expenses for "bodily injury":

- a. Any Insured
To any insured, except "volunteer workers".
- b. Hired Person
To a person hired to do work for or on behalf of any insured or a tenant of any insured.
- c. Injury On Normally Occupied Premises
To a person injured on that part of premises you own or rent that the person normally occupies.
- d. Workers Compensation and Similar Laws
To a person, whether or not an "employee" of any insured, if benefits for the "bodily injury" are payable or must be provided under a workers' compensation or disability benefits law or a similar law.
- e. Athletics Activities
To a person injured while practicing, instructing or participating in any physical exercises or games, sports or athletic contests.
- f. Products-Completed Operations Hazard
Included within the "products-completed operations hazard".
- g. Coverage A Exclusions
Excluded under Coverage A.

COVERAGE D. TENANTS' LEGAL LIABILITY

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as "compensatory damages" because of "property damage" to which this insurance applies. This insurance applies only to "property damage" to premises of others rented to you or occupied by you. We will have the right and duty to

defend the insured against any "action" seeking those "compensatory damages". However, we will have no duty to defend the insured against any "action" seeking "compensatory damages" for "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "action" that may result. But:

- (1) The amount we will pay for "compensatory damages" is limited as described in Section III – Limits Of Insurance; and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A, B or D or medical expenses under Coverage C.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under

Supplementary Payments – Coverages A, B and D.

b. This insurance applies to "property damage" only if:

- (1) The "property damage" is caused by an "occurrence" that takes place in the "coverage territory";
- (2) The "property damage" occurs during the policy period; and
- (3) Prior to the policy period, no insured listed under Paragraph 1. of Section II – Who Is An Insured and no "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew that the "property damage" had occurred, in whole or in part. If such a listed insured or authorized "employee" knew, prior to the policy period, that the "property damage" occurred, then any continuation, change or resumption of such "property damage" during or after the policy period will be deemed to have been known prior to the policy period.

c. "Property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim, includes any continuation, change or resumption of that "property damage" after the end of the policy period.

d. "Property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed under

Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim:

- (1) Reports all, or any part, of the "property damage" to us or any other insurer;
- (2) Receives a written or verbal demand or claim for "compensatory damages" because of the "property damage";
- (3) Becomes aware by any other means that "property damage" has occurred or has begun to occur.

2. Exclusions

This insurance does not apply to:

a. Expected or Intended Injury

"Property damage" expected or intended from the standpoint of the insured.

b. Contractual Liability

"Property damage" for which the insured is obligated to pay "compensatory damages" by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for "compensatory damages":

- (1) That the insured would have in the absence of the contract or agreement; or
- (2) Assumed in a contract or agreement that is an "insured contract", provided the "property damage" occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability reasonable legal fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be "compensatory damages" because of "property damage", provided:
 - (a) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and
 - (b) Such legal fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which "compensatory damages" to which this insurance applies are alleged.

c. Asbestos – see Common Exclusions

d. Fungi or Spores – see Common Exclusions

e. Nuclear– see Common Exclusions

f. Pollution – see Common Exclusions

g. Terrorism – see Common Exclusions

h. War Risks – see Common Exclusions

COMMON EXCLUSIONS – COVERAGES A, B, C and D

This insurance does not apply to:

1. Asbestos

"Bodily injury", "property damage" or "personal and advertising injury" related to or arising from any actual or alleged liability for any legal remedy of any kind whatsoever (including but not limited to damages, interest,

mandatory or other injunctive relief, statutory orders or penalties, legal or other costs, or expenses of any kind) in respect of actual or threatened loss, damage, cost or expense directly or indirectly caused by, resulting from, in consequence of or in any way involving, asbestos or any materials containing asbestos in whatever form or quantity.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".

2. Fungi or Spores

- a. "Bodily injury", "property damage" or "personal and advertising injury" or any other cost, loss or expense incurred by others, arising directly or indirectly from the actual, alleged or threatened inhalation of, ingestion of, contact with, exposure to, existence of, presence of, spread of, reproduction, discharge or other growth of any "fungi" or "spores" however caused, including any costs or expenses incurred to prevent, respond to, test for, monitor, abate, mitigate, remove, cleanup, contain, remediate, treat, detoxify, neutralize, assess or otherwise deal with or dispose of "fungi" or "spores";
- b. Any supervision, instructions, recommendations, warnings, or advice given or which should have been given in connection with
 - a. above; or
- c. Any obligation to pay damages, share damages with or repay someone else who must pay damages because of such injury or damage referred to in a. or b. above.
This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".

3. Nuclear Energy Liability

- a. Liability imposed by or arising from any nuclear liability act, law or statute, or any law amendatory thereof;
- b. "Bodily injury", "property damage" or "personal and advertising injury" with respect to which an insured under this policy is also insured under a contract of nuclear energy liability insurance (whether the insured is unnamed in such contract and whether or not it is legally enforceable by the insured) issued by the Nuclear Insurance Association of Canada or any other insurer or group or pool of insurers or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability;
- c. "Bodily injury", "property damage" or "personal and advertising injury" resulting directly or indirectly from the "nuclear energy hazard" arising from:
 - 1) The ownership, maintenance, operation or use of a "nuclear facility" by or on behalf of an insured;
 - 2) The furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility";
 - 3) The possession, consumption, use, handling, disposal or transportation of "fissionable substances", or of other "radioactive material" (except radioactive isotopes, away from a nuclear facility, which have reached the final stage of fabrication so as to be useable for any scientific, medical, agricultural, commercial or industrial purpose) used, distributed, handled or sold by an insured.This exclusion applies regardless of any other contributing or aggravating cause or event that contribute concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".

4. Pollution

- (1) "Bodily injury", "property damage" or "personal and advertising injury" arising out of the actual, alleged or threatened spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of "pollutants":
 - (a) At or from any premises, site or location which is or was at any time owned or occupied by, or rented or loaned to, any insured. However, this subparagraph does not apply to:
 - (i) "Bodily injury" if sustained within a building and caused by smoke, fumes, vapour or soot from equipment used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building's occupants or their guests;
 - (ii) "Bodily injury" or "property damage" for which you may be held liable, if you are a contractor and the owner or lessee of such premises, site or location has been added to your policy as an additional insured with respect to your ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured, other than that additional insured; or
 - (iii) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire";
 - (b) At or from any premises, site or location which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste;
 - (c) Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for:
 - (i) Any insured; or
 - (ii) Any person or organization for whom you may be legally responsible; or
 - (d) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the "pollutants" are

brought on or to the premises, site or location in connection with such operations by such insured, contractor or subcontractor. However, this subparagraph does not apply to:

- (i) "Bodily injury" or "property damage" arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of mobile equipment or its parts, if such fuels, lubricants or other operating fluids escape from a vehicle part designed to hold, store or receive them. This exception does not apply if the "bodily injury" or "property damage" arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on or to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured, contractor or subcontractor;
 - (ii) "Bodily injury" or "property damage" sustained within a building and caused by the release of gases, fumes or vapours from materials brought into that building in connection with operations being performed by you or on your behalf by a contractor or subcontractor; or
 - (iii) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire".
 - (e) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants".
- (2) Any loss, cost or expense arising out of any:
- (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants";
 - (b) Claim or "action" by or on behalf of a governmental authority for "compensatory damages" because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

However, this Section (2) does not apply to liability for "compensatory damages" because of "property damage" that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or "action" by or on behalf of a governmental authority.

5. **Terrorism**
"Bodily injury", "property damage" or "personal and advertising injury" arising directly or indirectly, in whole or in part, out of "terrorism" or out of any activity or decision of a government agency or other entity to prevent, respond to or terminate "terrorism".
This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".
6. **War Risks**
"Bodily injury", "property damage" or "personal and advertising injury" arising directly or indirectly, in whole or in part, out of war, invasion, act of foreign enemy, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or military power. This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".

SUPPLEMENTARY PAYMENTS – COVERAGES A, B and D

1. We will pay, with respect to any claim we investigate or settle, or any "action" against an insured we defend:
- a. All expenses we incur.
 - b. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.
 - c. All reasonable expenses you incur at our request to assist us in the investigation or defense of the claim or "action", including actual loss of earnings up to \$250 a day because of time off from work.
 - d. All costs assessed or awarded against you in the "action".
 - e. Any interest accruing after entry of judgment upon that part of the judgment which is within the applicable limit of insurance and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.
- These payments will not reduce the limits of insurance.
2. If we defend an insured against an "action" and an indemnitee of the insured is also named as a party to the "action", we will defend that indemnitee if all of the following conditions are met:
- a. The "action" against the indemnitee seeks "compensatory damages" for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an "insured contract";
 - b. This insurance applies to such liability assumed by the insured;
 - c. The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same "insured contract";

- d. The allegations in the "action" and the information we know about the "occurrence" are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;
- e. The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such "action" and agree that we can assign the same counsel to defend the insured and the indemnitee; and
- f. The indemnitee:
 - (1) Agrees in writing to:
 - (a) Cooperate with us in the investigation, settlement or defense of the "action";
 - (b) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "action";
 - (c) Notify any other insurer whose coverage is available to the indemnitee; and
 - (d) Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and
 - (2) Provides us with written authorization to:
 - (a) Obtain records and other information related to the "action"; and
 - (b) Conduct and control the defense of the indemnitee in such "action".

So long as the above conditions are met, legal fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Supplementary Payments. Notwithstanding the provisions of Paragraph 2.b. (2) of Section I – Coverage A – Bodily Injury and Property Damage Liability, such payments will not be deemed to be "compensatory damages" for "bodily injury" and "property damage" and will not reduce the limits of insurance.

Our obligation to defend an insured's indemnitee and to pay for legal fees and necessary litigation expenses as Supplementary Payments ends when:

- a. We have used up the applicable limit of insurance in the payment of judgments or settlements; or
- b. The conditions set forth above, or the terms of the agreement described in Paragraph f. above, are no longer met.

SECTION II – WHO IS AN INSURED

- 1. If you are designated in the Declarations as:
 - a. An individual, you and your spouse are insureds, but only with respect to the conduct of a business of which you are the sole owner.
 - b. A partnership, limited liability partnership or joint venture, you are an insured. Your members, your partners, and their spouses are also insureds, but only with respect to the conduct of your business.
 - c. A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.
 - d. An organization other than a partnership, limited liability partnership, joint venture or limited liability company, you are an insured. Your "executive officers" and directors are insureds, but only with respect to their duties as your officers or directors.
Your shareholders are also insureds, but only with respect to their liability as shareholders.
 - e. A trust, you are an insured. Your trustees are also insureds, but only with respect to their duties as trustees.
- 2. Each of the following is also an insured:
 - a. Your "volunteer workers" only while performing duties related to the conduct of your business, or your "employees", other than either your "executive officers" (if you are an organization other than a partnership, limited liability partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, none of these "employees" or "volunteer workers" are insureds for:
 - (1) "Bodily injury" or "personal and advertising injury":
 - (a) To you, to your partners or members (if you are a partnership, limited liability partnership or joint venture), to your members (if you are a limited liability company), to a co-"employee" while in the course of his or her employment or performing duties related to the conduct of your business, or to your other "volunteer workers" while performing duties related to the conduct of your business;
 - (b) To the spouse, child, parent, brother or sister of that co-"employee" or "volunteer worker" as a consequence of Paragraph (1) (a) above;
 - (c) For which there is any obligation to share "compensatory damages" with or repay someone else who must pay "compensatory damages" because of the injury described in Paragraphs (1)(a) or (b) above;
 - (d) Arising out of his or her providing or failing to provide professional health care services; or

- (e) To any person who at the time of injury is entitled to benefits under any workers' compensation or disability benefits law or a similar law.
 - (2) "Property damage" to property:
 - (a) Owned, occupied or used by,
 - (b) Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by you, any of your "employees", "volunteer workers", any partner or member (if you are a partnership, limited liability partnership or joint venture), or any member (if you are a limited liability company).
 - b. Any person (other than your "employee" or "volunteer worker"), or any organization while acting as your real estate manager.
 - c. Any person or organization having proper temporary custody of your property if you die, but only:
 - (1) With respect to liability arising out of the maintenance or use of that property; and
 - (2) Until your legal representative has been appointed.
 - d. Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this policy.
3. Any organization you newly acquire or form, other than a partnership, limited liability partnership or joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:
- a. Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier;
 - b. Coverage A and D does not apply to "bodily injury" or "property damage" that occurred before you acquired or formed the organization; and
 - c. Coverage B does not apply to "personal and advertising injury" arising out of an offense committed before you acquired or formed the organization.
- No person or organization is an insured with respect to the conduct of any current or past partnership, limited liability partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

SECTION III – LIMITS OF INSURANCE

- 1. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:
 - a. Insureds;
 - b. Claims made or "actions" brought; or
 - c. Persons or organizations making claims or bringing "actions".
- 2. The **General Aggregate Limit** is the most we will pay for the sum of:
 - a. "Compensatory damages" under Coverage A, except "compensatory damages" because of "bodily injury" or "property damage" included in the "products-completed operations hazard";
 - b. "Compensatory damages" under Coverage B; and
 - c. Medical expenses under Coverage C.
- 3. The **Products-Completed Operations Aggregate Limit** is the most we will pay under Coverage A for "compensatory damages" because of "bodily injury" and "property damage" included in the "products-completed operations hazard".
- 4. Subject to 2. or 3. above, whichever applies, the **Each Occurrence Limit** is the most we will pay for the sum of:
 - a. "Compensatory damages" under Coverage A; and
 - b. Medical expenses under Coverage C because of all "bodily injury" and "property damage" arising out of any one "occurrence".
- 5. Subject to 2. above, the **Personal and Advertising Injury Limit** is the most we will pay under Coverage B for the sum of all "compensatory damages" because of all "personal and advertising injury" sustained by any one person or organization.
- 6. The **Tenants' Legal Liability Limit – Any one premises** is the most we will pay under Coverage D for "compensatory damages" because of "property damage" to any one premises.
- 7. Subject to 4. above, the **Medical Payments Limit - Any one person** is the most we will pay under Coverage C for all medical expenses because of "bodily injury" sustained by any one person.

The Limits of Insurance of this policy apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy

period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS

1. **Bankruptcy**
Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this policy.
2. **Canadian Currency Clause**
All limits of insurance, premiums and other amounts as expressed in this policy are in Canadian currency.
3. **Changes.**
This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this policy with our consent.
This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.
4. **Duties In The Event Of Occurrence, Offense, Claim or Action**
 - a. You must see to it that we are notified as soon as practicable of an "occurrence" or an offense which may result in a claim. To the extent possible, notice should include:
 - (1) How, when and where the "occurrence" or offense took place;
 - (2) The names and addresses of any injured persons and witnesses; and
 - (3) The nature and location of any injury or damage arising out of the "occurrence" or offense.
 - b. If a claim is made or "action" is brought against any insured, you must:
 - (1) Immediately record the specifics of the claim or "action" and the date received; and
 - (2) Notify us as soon as practicable.You must see to it that we receive written notice of the claim or "action" as soon as practicable.
 - c. You and any other involved insured must:
 - (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "action";
 - (2) Authorize us to obtain records and other information;
 - (3) Cooperate with us in the investigation or settlement of the claim or defense against the "action"; and
 - (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.
 - d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.
5. **Examination Of Your Books and Records.**
We may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.
6. **Inspections and Surveys**
 1. We have the right to:
 - a. Make inspections and surveys at any time;
 - b. Give you reports on the conditions we find; and
 - c. Recommend changes.
 2. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:
 - a. Are safe or healthful; or
 - b. Comply with laws, regulations, codes or standards.
 3. Paragraphs 1. and 2. of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.
 4. Paragraph 2. of this condition does not apply to any inspections, surveys, reports or recommendations we may make relative to certification, under provincial or municipal statutes, ordinances, bylaws or regulations, of boilers, pressure vessels or elevators.
7. **Legal Action Against Us**
No person or organization has a right under this policy:
 - a. To join us as a party or otherwise bring us into an "action" asking for "compensatory damages" from an insured; or
 - b. To sue us on this policy unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for "compensatory damages" that are not payable under the terms of this policy or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

8. Other Insurance

If other valid and collectible insurance is available to the insured for a loss we cover under Coverages A, B or D of this policy, our obligations are limited as follows:

a. Primary Insurance

This insurance is primary except when b. below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in c. below.

b. Excess Insurance

This insurance is excess over:

(1) Any of the other insurance, whether primary, excess, contingent or on any other basis:

- (a) That is Fire, Extended Coverage, Builder's Risk, Installation Risk or similar coverage for "your work";
- (b) That is Fire insurance for premises rented to you or temporarily occupied by you with permission of the owner;
- (c) If the loss arises out of the maintenance or use of watercraft to the extent not subject to Exclusion e. of Section I – Coverage A – Bodily Injury and Property Damage Liability.

(2) Any other primary insurance available to you covering liability for "compensatory damages" arising out of the premises or operations or products-completed operations for which you have been added as an additional insured by attachment of an endorsement.

When this insurance is excess, we will have no duty under Coverages A, B or D to defend the insured against any "action" if any other insurer has a duty to defend the insured against that "action". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if

any, that exceeds the sum of:

- (1) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and
- (2) The total of all deductible and self-insured amounts under all that other insurance.

We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this policy.

c. Method Of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first. If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

9. Premium Audit

a. We will compute all premiums for this policy in accordance with our rules and rates.

b. If Premium adjustment information is provided in the Declarations, the premium shown is a deposit premium only. At the close of each audit period we will compute the earned premium for that period. Audit premiums are due and payable on notice to the first Named Insured. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured subject to the retention of the minimum retained premium shown in the Declarations of this policy.

c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

10. Premiums

The first Named Insured shown in the Declarations:

- a. Is responsible for the payment of all premiums; and
- b. Will be the payee for any return premiums we pay.

11. Representations

By accepting this policy, you agree:

- a. The statements in the Declarations are accurate and complete;
- b. Those statements are based upon representations you made to us; and
- c. We have issued this policy in reliance upon your representations.

12. **Separation Of Insureds, Cross Liability**
Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this policy to the first Named Insured, this insurance applies:
- As if each Named Insured were the only Named Insured; and
 - Separately to each insured against whom claim is made or "action" is brought.
13. **Termination**
- The first Named Insured shown in the Declarations may terminate this policy by mailing or delivering to us advance written notice of termination.
 - We may terminate this policy by mailing or delivering to the first Named Insured written notice of termination at least:
 - 15 days before the effective date of termination if we terminate for nonpayment of premium; or
 - 30 days before the effective date of termination if we terminate for any other reason.Except in Quebec, if notice is mailed, termination takes effect 15 or 30 days after receipt of the letter by the post office to which it is addressed, depending upon the reason for termination. Proof of mailing will be sufficient proof of notice.
In Quebec, termination takes effect either 15 or 30 days after receipt of the notice at the last known address of the first Named Insured, depending upon the reason for termination.
 - We will mail or deliver our notice to the first Named Insured's last mailing address known to us.
 - The policy period will end on the date termination takes effect.
 - If this policy is terminated, we will send the first Named Insured any premium refund due. If we terminate, the refund will be pro rata. If the first Named Insured terminates, the refund may be less than pro rata. The termination will be effective even if we have not made or offered a refund.
14. **Transfer Of Rights Of Recovery Against Others To Us**
If the insured has rights to recover all or part of any payment we have made under this policy, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "action" or transfer those rights to us and help us enforce them.
15. **Transfer Of Your Rights and Duties Under This Policy**
Your rights and duties under this policy may not be transferred without our written consent except in the case of death of an individual Named Insured. If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having proper temporary custody of your property will have your rights and duties but only with respect to that property.

SECTION V – DEFINITIONS

- "Abuse"** means any act or threat involving molestation, harassment, corporal punishment or any other form of physical, sexual or mental abuse.
- "Action"** means a civil proceeding in which "compensatory damages" because of "bodily injury", "property damage" or "personal and advertising injury" to which this insurance applies are alleged. "Action" includes:
 - An arbitration proceeding in which such "compensatory damages" are claimed and to which the insured must submit or does submit with our consent; or
 - Any other alternative dispute resolution proceeding in which such "compensatory damages" are claimed and to which the insured submits with our consent.
- "Advertisement"** means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:
 - Notices that are published include material placed on the Internet or on similar electronic means of communication; and
 - Regarding web-sites, only that part of a web-site that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.
- "Automobile"** means a land motor vehicle, trailer or semitrailer that is required by law to be insured under a contract evidenced by a motor vehicle liability policy, or any vehicle insured under such a contract, including any attached machinery or equipment.
- "Bodily injury"** means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.

6. **"Compensatory damages"** means damages due or awarded in payment for actual injury or economic loss. "Compensatory damages" does not include punitive or exemplary damages or the multiple portion of any multiplied damage award.
7. **"Coverage territory"** means:
- Canada
 - International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in a. above; or
 - All other parts of the world if the injury or damage arises out of:
 - Goods or products made or sold by you in the territory described in a. above;
 - The activities of an insured person whose home is in the territory described in a. above, but is away for a short time on your business; or
 - "Personal and advertising injury" offenses that take place through the Internet or similar electronic means of communication provided the insured's responsibility to pay "compensatory damages" is determined in an "action" on the merits, in the territory described in a. above or in a settlement we agree to.
8. **"Employee"** includes a "leased worker" and a "temporary worker".
9. **"Executive officer"** means a person holding any of the officer positions created by your charter, constitution, bylaws or any other similar governing document.
10. **"Fissionable substance"** means any prescribed substance that is, or from which can be obtained, a substance capable of releasing atomic energy by nuclear fission.
11. **"Fungi"** includes, but is not limited to, any form or type of mould, yeast, mushroom or mildew whether or not allergenic, pathogenic or toxigenic, and any substance, vapour or gas produced by, emitted from or arising out of any "fungi" or "spores" or resultant mycotoxins, allergens or pathogens.
12. **"Hostile fire"** means one which becomes uncontrollable or breaks out from where it was intended to be.
13. **"Impaired property"** means tangible property, other than "your product" or "your work", that cannot be used or is less useful because:
- It incorporates "your product" or "your work" that is known or thought to be defective, deficient, inadequate or dangerous; or
 - You have failed to fulfill the terms of a contract or agreement;
if such property can be restored to use by:
 - The repair, replacement, adjustment or removal of "your product" or "your work"; or
 - Your fulfilling the terms of the contract or agreement.
14. **"Incidental medical malpractice injury"** means "bodily injury" arising out of the rendering of or failure to render, during the Policy Period, the following services:
- medical, surgical, dental, x-ray or nursing services or treatment or the furnishing of food or beverages in connection therewith;
or
 - the furnishing or dispensing of drugs or medical, dental or surgical supplies or appliances;
by any insured or any indemnitee causing the "incidental medical malpractice injury" who is not engaged in the business or occupation of providing any of the services described in i) and ii) above.
15. **"Insured contract"** means:
- A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";
 - A sidetrack agreement;
 - An easement or license agreement in connection with vehicle or pedestrian private railroad crossings at grade;
 - Any other easement agreement;
 - An obligation, as required by ordinance or bylaw, to indemnify a municipality, except in connection with work for a municipality;
 - An elevator maintenance agreement;
 - That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "compensatory damages" because of "bodily injury" or "property damage" to a third person or organization, provided the "bodily injury" or "property damage" is caused, in whole or in

part, by you or by those acting on your behalf. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph g. does not include that part of any contract or agreement:

- (1) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:
 - (a) Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
 - (b) Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage;
- (2) Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render "professional services", including those listed in (1) above and supervisory, inspection, architectural or engineering activities.

16. **"Leased worker"** means a person leased to you by a labour leasing firm under an agreement between you and the labour leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".
17. **"Loading or unloading"** means the handling of property:
 - a. After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or "automobile";
 - b. While it is in or on an aircraft, watercraft or "automobile"; or
 - c. While it is being moved from an aircraft, watercraft or "automobile" to the place where it is finally delivered; but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or "automobile".
18. **"Nuclear energy hazard"** means the radioactive, toxic, explosive, or other hazardous properties of radioactive material.
19. **"Nuclear facility"** means:
 - a) any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of plutonium, thorium and uranium or any one or more of them;
 - b) any equipment or device designed or used for (i) separating the isotopes of plutonium, thorium and uranium or any one or more of them, (ii) processing or packaging waste;
 - c) any equipment or device used for the processing, fabricating or alloying of plutonium, thorium or uranium enriched in the isotope uranium 233 or in the isotope uranium 235, or any one or more of them if at any time the total amount of such material in the custody of the insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;
 - d) any structure, basin, excavation, premises or place prepared or used for the storage or disposal of waste radioactive material; and includes the site on which any of the foregoing is located, together with all operations conducted thereon and all premises used for such operations.
20. **"Occurrence"** means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.
21. **"Personal and advertising injury"** means injury, including consequential "bodily injury", arising out of one or more of the following offenses:
 - a. False arrest, detention or imprisonment;
 - b. Malicious prosecution;
 - c. The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;
 - d. Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;
 - e. Oral or written publication, in any manner, of material that violates a person's right of privacy;
 - f. The use of another's advertising idea in your "advertisement"; or
 - g. Infringing upon another's copyright, trade dress or slogan in your "advertisement".
22. **"Pollutants"** mean any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, odour, vapour, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.
23. **"Products-completed operations hazard"**:
 - a. Includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your product" or "your work" except:
 - (1) Products that are still in your physical possession; or
 - (2) Work that has not yet been completed or abandoned. However, "your work" will be deemed completed at the earliest of the following times:

- (a) When all of the work called for in your contract has been completed.
- (b) When all of the work to be done at the job site has been completed if your contract calls for work at more than one job site.
- (c) When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project. Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

b. Does not include "bodily injury" or "property damage" arising out of:

- (1) The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you, and that condition was created by the "loading or unloading" of that vehicle by any insured;
- (2) The existence of tools, uninstalled equipment or abandoned or unused materials.

24. **"Professional services"** shall include but not be limited to:

- a. Medical, surgical, dental, x-ray or nursing service or treatment, or the furnishing of food or beverages in connection therewith;
- b. Any professional service or treatment conducive to health;
- c. Professional services of a pharmacist;
- d. The furnishing or dispensing of drugs or medical, dental or surgical supplies or appliances;
- e. The handling or treatment of deceased human bodies including autopsies, organ donations or other procedures;
- f. Any cosmetic, body piercing, tonsorial, massage, physiotherapy, chiropody, hearing aid, optical or optometrical services or treatments;
- g. The preparation or approval of maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications;
- h. Supervisory, inspection, architectural, design or engineering services;
- i. Accountant's, advertiser's, notary's (Quebec), public notary's, paralegal's, lawyer's, real estate broker's or agent's, insurance broker's or agent's, travel agent's, financial institution's, or consultant's professional advices or activities;
- j. Any computer programming or re-programming, consulting, advisory or related services; or
- k. Claim, investigation, adjustment, appraisal, survey or audit services.

25. **"Property damage"** means:

- a. Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or
- b. Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the "occurrence" that caused it. For the purposes of this insurance, electronic data is not tangible property.

As used in this definition, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

26. **"Radioactive material"** means uranium, thorium, plutonium, neptunium, their respective derivatives and compounds, radioactive isotopes of other elements and any other substances which may be designated by any nuclear liability act, law or statute, or any law amendatory thereof, as being prescribed substances capable of releasing atomic energy, or as being requisite for the production, use or application of atomic energy;

27. **"Spores"** includes, but is not limited to, any reproductive particle or microscopic fragment produced by, emitted from or arising out of any "fungi".

28. **"Temporary worker"** means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

29. **"Terrorism"** means an ideologically motivated unlawful act or acts, including but not limited to the use of violence or force or threat of violence or force, committed by or on behalf of any group(s), organization(s) or government(s) for the purpose of influencing any government and/or instilling fear in the public or a section of the public.

30. **"Volunteer worker"** means a person who is not your "employee", and who donates his or her work and acts at the direction of and within the scope of duties determined by you, and is not paid a fee, salary or other compensation by you or anyone else for their work performed for you.

31. **"Your product":**

- a. Means:

- (1) Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:
 - (a) You;
 - (b) Others trading under your name; or
 - (c) A person or organization whose business or assets you have acquired; and
- (2) Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.
- b. Includes
 - (1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and
 - (2) The providing of or failure to provide warnings or instructions.
- c. Does not include vending machines or other property rented to or located for the use of others but not sold.

32. **"Your work":**

- a. Means:
 - (1) Work or operations performed by you or on your behalf; and
 - (2) Materials, parts or equipment furnished in connection with such work or operations.
- b. Includes
 - (1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your work", and
 - (2) The providing of or failure to provide warnings or instructions.

PREMIUM PAYMENT CLAUSE – LSW3001

Notwithstanding any provision to the contrary within this contract or any endorsement hereto, in respect of non payment of premium only the following clause will apply.

The (Re)Insured undertakes that premium will be paid in full to (Re)Insurers within [90] days of inception of this contract (or, in respect of instalment premiums, when due).

If the premium due under this contract has not been so paid to (Re)Insurers by the [90th] day from the inception of this contract (and, in respect of instalment premiums, by the date they are due) (Re)Insurers shall have the right to cancel this contract by notifying the (Re)Insured via the broker in writing. In the event of cancellation, premium is due to (Re)Insurers on a short rate basis for the period that (Re)Insurers are on risk but the full contract premium shall be payable to (Re)Insurers in the event of a loss or occurrence prior to the date of termination which gives rise to a valid claim under this contract.

It is agreed that (Re)Insurers shall give not less than [90] days prior notice of cancellation to the (Re)Insured via the broker. If premium due is paid in full to (Re)Insurers before the notice period expires, notice of cancellation shall automatically be revoked. If not, the contract shall automatically terminate at the end of the notice period.

If any provision of this clause is found by any court or administrative body of competent jurisdiction to be invalid or unenforceable, such invalidity or unenforceability will not affect the other provisions of this clause which will remain in full force and effect.

LSW3001
September 2008

SERVICE OF SUIT CLAUSE (CANADA) (Action against Insurer)

In any action to enforce the obligations of the Underwriters they can be designated or named as “Lloyd’s Underwriters” and such designation shall be binding on the Underwriters as if they had each been individually named as defendant. Service of such proceedings may validly be made upon the Attorney in Fact in Canada for Lloyd’s Underwriters at: Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2. In addition, Quebec Legal proceedings may be served to c/o Blake, Cassels & Graydon LLP, One Place Ville Marie, Suite 3000, Montreal, Quebec H3B 4N8.

LMA5028B
15 April 2022

INTENTION FOR AIF TO BIND CLAUSE

Whereas Lloyd’s Underwriters have been granted an order to insure in Canada risks under the Insurance companies Act (Canada) and are registered in all provinces and territories in Canada to carry on insurance business under the laws of these jurisdictions or to transact insurance in these jurisdictions.

And whereas applicants for insurance coverage in respect of risks located in Canada and Canadian Cedants wish that Lloyd’s insurance and reinsurance coverage be provided in a manner that requires Lloyd’s Underwriters to vest assets in trust in respect of their risks pursuant to the Insurance Companies Act (Canada);

- a) This contract shall be in force and shall be the governing contract pending the decision by Lloyd’s Underwriters’ attorney and chief agent in Canada (the “AIF”) to confirm coverage in accordance with both the terms and conditions set out in this contract and applicable Canadian law;
- b) The AIF shall confirm Lloyd’s Underwriters’ coverage by signing in Canada a policy that will contain the terms and conditions set out in this contract (the “Canadian Policy”), and by communicating from Canada the issuance of that policy to the policyholder or his broker;
- c) This contract shall cease to have effect upon the communication by the AIF from Canada of the Canadian Policy to the policyholder or his broker, and the Canadian Policy will replace and supersede this contract.

01/11/11
LMA5180

LLOYD'S UNDERWRITERS' POLICYHOLDERS' COMPLAINT PROTOCOL- LSW1542F

Lloyd's strives to enhance your customer experience with us through superior service and innovative insurance products. We have developed a formal complaint handling protocol in accordance with the Insurance Companies Act of Canada to ensure your concerns as our valued customer are addressed expeditiously by our representatives. This protocol will assist you in understanding the steps we will undertake to help resolve any dispute which may arise with our product or service. All complaints will be handled in a professional manner. All complaints will be investigated, acted upon, and responded to in writing or by telephone by a Lloyd's representative promptly after the receipt of the complaint. If you are not satisfied with our products or services, you can take the following steps to address the issue:

- Firstly, please contact the broker who arranged the insurance on your behalf about your concerns so that he or she may have the opportunity to help resolve the situation.
- If your broker is unable to help resolve your concerns, we ask that you provide us in writing an outline of your complaint along with the name of your broker and your policy number.

Please forward your complaint to:

Lloyd's Underwriters

Attention: Complaints Officer:

Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2

Tel: 1-877-455-6937

E-mail: info@lloyds.ca

Your complaint will be directed to the appropriate business contact for handling. They will write to you within two business days to acknowledge receipt of your complaint and to let you know when you can expect a full response. If need be, we will also engage internal staff in Lloyd's Policyholder and Market Assistance Department in London, England, who will respond directly to you, and in the last stages, they will issue a final letter of position on your complaint.

In the event that your concerns are still not addressed to your satisfaction, you have the right to continue your pursuit to have your complaint reviewed by the following organizations:

General Insurance OmbudService (GIO): assists in the resolution of conflicts between insurance customers and their insurance companies. The GIO can be reached at:

Toll free number: 1-877-225-0446

www.giocanada.org

For Quebec clients:

Autorité des marchés financiers (AMF): The regulation of insurance companies in Quebec is administered by the AMF. If you remain dissatisfied with the manner in which your complaint has been handled, or with the results of the complaint protocol, you may send your complaint to the AMF who will study your file and who may recommend mediation, if it deems this action appropriate and if both parties agree to it. The AMF can be reached at

Toll Free: 1-877-525-0337

Québec: (418) 525-0337

Montréal: (514) 395-0311

www.lautorite.qc.ca

If you have a complaint specifically about Lloyd's Underwriters' complaints handling procedures you may contact the FCAC.

Financial Consumer Agency of Canada (FCAC) provides consumers with accurate and objective information about financial products and services, and informs Canadians of their rights and responsibilities when dealing with financial institutions. FCAC also ensures compliance with the federal consumer protection laws that apply to banks and federally incorporated trust, loan and insurance companies. The FCAC does not get involved in individual disputes. The FCAC can be reached at:

427 Laurier Avenue West, 6th Floor, Ottawa ON K1R 1B9

Services in English: 1-866-461-FCAC (3222)

Services in French: 1-866-461-ACFC (2232)

www.fcac-acfc.gc.ca

PROTOCOLE RELATIF AUX PLAINTES DE TITULAIRES DE POLICES DU LLOYD'S - LSW1542F-16

Le Lloyd's s'efforce de rehausser l'expérience client par un service supérieur et des produits d'assurance innovants. Nous avons établi un protocole de traitement des plaintes, comme l'exige la Loi sur les sociétés d'assurance du Canada, afin que les problèmes signalés par nos précieux clients soient traités promptement par nos représentants. Ce protocole vous aidera à comprendre les mesures que nous prendrons dans le but de résoudre tout conflit lié à notre produit ou à notre service. Toutes les plaintes seront traitées de manière professionnelle. Dans tous les cas, une enquête sera faite, des dispositions seront prises et une réponse sera donnée par écrit ou par téléphone par un représentant du Lloyd's peu de temps après la réception de la plainte. Si vous n'êtes pas satisfait de nos produits ou de nos services, voici ce que vous pouvez faire:

- Communiquez d'abord avec votre courtier (celui par l'intermédiaire duquel vous avez souscrit l'assurance) afin qu'il ait l'occasion de régler la question.
- Si votre courtier est incapable de résoudre le problème, veuillez nous exposer votre plainte par écrit, en prenant soin d'indiquer le nom du courtier et votre numéro de police.

Veuillez nous adresser vos plaintes comme suit:

Souscripteurs du Lloyd's

Attention: Responsable des plaintes

Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2

Tél. : 1-877-455-6937

CÉ : info@lloyds.ca

Votre plainte sera remise à la personne appropriée pour qu'elle s'en occupe. Cette personne vous écrira dans les deux jours ouvrables suivants pour accuser réception de votre plainte et pour vous dire dans combien de temps une réponse complète devrait vous parvenir. Si nécessaire, la plainte sera aussi transmise au service Policyholder and Market Assistance du Lloyd's, à Londres. Dans ce cas, ce service vous répondra directement et, à la fin du processus, rédigera la lettre exposant notre position finale à l'égard de votre plainte.

Si le problème n'est toujours pas réglé à votre satisfaction, vous avez le droit de continuer à chercher une solution en le soumettant aux organismes suivants:

Le Service de conciliation en assurance de dommages (SCAD) facilite la résolution de conflits opposant des consommateurs et leur assureur. Voici comment le joindre:

Tél. : 1-877-225-0446

www.giocanada.org

Pour les clients du Québec:

L' Autorité des marchés financiers (AMF). – Au Québec, la réglementation des sociétés d'assurance relève de l'AMF. Si vous n'êtes pas satisfait de la manière dont votre plainte a été traitée ou réglée par le Lloyd's, vous pouvez la soumettre à l'AMF. Celle-ci étudiera le dossier et pourra recommander une médiation si elle le juge approprié et si les deux parties y consentent. Voici comment joindre l'AMF:

Québec: (418) 525-0337

Montréal: (514) 395-0311

Autres régions : 1-877-525-0337

www.lautorite.qc.ca

Si votre plainte porte sur le processus de traitement des plaintes employé par les Souscripteurs du Lloyd's, vous pouvez vous adresser à l'Agence de consommation en matière financière du Canada (ACFC).

L'Agence de consommation en matière financière du Canada (ACFC) donne aux consommateurs des renseignements précis et objectifs sur les produits et services financiers et informe les Canadiens au sujet de leurs droits et responsabilités dans leurs rapports avec des institutions financières. Elle surveille aussi la conformité aux dispositions relatives à la protection des consommateurs qui sont prévues dans les lois fédérales applicables aux banques et aux sociétés de fiducie, de prêt et d'assurance constituées en vertu d'une loi fédérale. Voici les coordonnées de l'ACFC:

427, avenue Laurier Ouest, 6e étage, Ottawa ON K1R 1B9

Service en français : 1-866-461-ACFC (2232)

Service en anglais : 1-866-461-FCAC (3222)

www.fcac-acfc.gc.ca

NOTICE CONCERNING PERSONAL INFORMATION

Introduction:

This notice describes how Lloyd's Canada, as a data controller, collects, uses, shares and retains the personal information you provide and informs you about your choices regarding use, access and correction of your personal information. Lloyd's is committed to ensuring that any personal data it receives is protected and handled in accordance with applicable data protection laws.

Consent to Collection:

By purchasing insurance or filing a claim on a policy issued by Lloyd's Underwriters in Canada, ("Lloyd's"), a customer provides Lloyd's with their consent to the collection, use and disclosure of personal information. Consent is subject to the customer's understanding of the nature, purpose, and consequences of the collection, use or disclosure of their personal information.

How we Collect Information:

We receive policy and claim information from sources such as: Lloyd's Coverholders, Lloyd's Managing Agents, insurance brokers, claims adjusters, and other insurance intermediaries.

What personal information we process about you and how it is used:

Information is collected and stored for the following purposes:

- the communication with Lloyd's policyholders
- the underwriting of policies
- the evaluation of claims
- the analysis of business results
- purposes required or authorized by law

We collect, process, and store the following personal information about you:

- Name
- Address including postal code and country
- Policy number
- Claim number
- Claim details

We also collect information about you when you visit www.lloyds.com . Further details can be found on our online Privacy & Cookies policy at [Privacy - Lloyd's \(lloyds.com\)](http://Privacy - Lloyd's (lloyds.com))

We will not use your personal information for marketing purposes, and we will not sell your personal information to other parties.

Who we disclose your information to:

For our general business administration, efficiency, and accuracy purposes, your personal information might be shared among certain Lloyd's offices. In order to properly manage the Lloyd's market and exercise certain supervisory powers, we may share your personal information with the Lloyd's Market Participants. For example, to successfully resolve any complaint, we will require all relevant information about your coverage and concerns.

To help manage our business and deliver services, we may share your personal information with third party service providers such as IT suppliers and business services. We require all our service providers to respect the confidentiality and security of personal data.

We may be under legal or regulatory obligations to share your personal data with Canadian courts, regulators, and law enforcement bodies.

Personal information collected by Lloyd's may be stored in several provinces within Canada, as well as sent for processing to Lloyd's offices in international locations such as the United States, the United Kingdom and the European Union. The collection, use and disclosure of personal information will be subject to the laws of those jurisdictions. By communicating personal information to us, for the purchase of insurance products or filing claims, you hereby consent to disclosing such personal information as may be required by the laws of that jurisdiction.

For the purposes described above, personal information may be disclosed to Lloyd's related or affiliated organisations or companies, their agents/mandataries, and to certain IT suppliers and business services providers. As some of these entities and Business Services Providers may be located outside of Canada, including in the United States of America or another foreign jurisdiction such as the United Kingdom and the European Union, the collection, use and disclosure of personal information will be subject to the laws of that jurisdiction. By communicating personal information to us, for the purchase of insurance products or filing claims, you hereby consent to these entities and Business Services Providers located outside of Canada to disclosing such personal information as required by the laws of that jurisdiction.

Use or disclosure without consent or further notification

Personal information may be used for a purpose other than those for which it was originally collected, without the consent, in the following situations:

- Legitimate business purposes: When it is necessary for the supply or delivery of a product or the provision of a service you have requested. We may also be required to share information to investigate allegations of fraud; where permitted or required by law; to protect and defend legal claims; and, at the request of government institutions in accordance with applicable laws.
- Interest of the individual: When it is clearly used for your benefit.
- Research, data analytics and AI. Only if it is used for purposes consistent with those it was collected, for study or research purposes, or for statistical purposes (where if the information has been de-identified).

Retention

We retain personal information for the purposes described above, for so long as is necessary to achieve those purposes. We will also retain information for so long as required by or regulatory obligations or by law.

Your rights

You have certain rights as an individual which you can exercise in relation to the information we hold about you. If you make a request to exercise any of your rights, we reserve the right to ask you for a proof of your identity. We aim to acknowledge your request as soon as possible and will address your query within one month from your request.

You have the following rights:

The right to access

You are entitled to a confirmation to how we are processing your data, a copy of your data, and information about the purposes of processing, who do we disclose it to, whether we transfer it abroad and how we protect it, how long we keep it for, what rights you have, where we got your data from and how you can make a complaint.

We may have to decline a request due to legal restrictions. This could include, but are not limited to:

- the information is subject to solicitor/client privilege,
- providing the information would reveal personal information about a third party, or
- providing the information could compromise the investigation of a claim.

The right to rectification

If you believe the personal information we hold about you is inaccurate or incomplete, you can request for it to be rectified.

The right to be forgotten

If you withdraw your consent, terminate a contract with us or you believe the personal information is no longer necessary for the purposes for which it was collected, you may request your data to be deleted. However, this will need to be balanced against other factors. For example, there may be certain regulatory obligations which may prevent us from completing your request.

The right to data portability

If we collected your information under a contract or your consent, you can request from us to transfer your personal information to provide it to another third party of your choice.

The right to withdraw consent

If we processed your personal information under your consent, you can withdraw consent to the communication or use of the information collected; assuming it is no longer needed for the purposes it was collected.

How to access your information and/or contact us

For further information about Lloyd's management of personal information or to request, access, corrections, deletion, or to make a complaint, please contact:

Lloyd's Underwriters
Attention: Nicole Seymour, Privacy Officer
Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930,
P.O. Box 51 Toronto, Ontario M5J 2J2
Tel: 1-416-360-1512
E-mail: LloydsCanada@lloyds.com

08/23
LSW1543E

AVIS CONCERNANT LES RENSEIGNEMENTS PERSONNELS

Introduction:

Le présent avis définit la manière dont Lloyd's Canada collecte, utilise, partage et conserve vos données personnelles et vous informe des choix qui s'offrent à vous en ce qui concerne l'utilisation, l'accès et la correction de vos renseignements personnels. Lloyd's Canada s'engage à garantir que toutes les données personnelles qu'elle reçoit soient protégées et traitées conformément aux lois en vigueur dans ce domaine.

Consentement à la collecte de données:

En souscrivant une assurance ou en présentant une demande d'indemnisation auprès des Souscripteurs du Lloyd's au Canada ("Lloyd's"), un client donne son consentement explicite au Lloyd's pour la collecte, l'utilisation et la divulgation de renseignements personnels. Un consentement est subordonné à la compréhension par le client de la nature, du but et des conséquences de la collecte, de l'utilisation ou de la communication de ses renseignements personnels.

Comment recueillons-nous l'information?

Nous recevons des renseignements sur les polices et les demandes d'indemnisation de sources telles que: les courtiers mandataires du Lloyd's, les agents de gestion du Lloyd's, les courtiers d'assurance, les experts en sinistres et d'autres intermédiaires d'assurance.

Quels sont les renseignements personnels que nous traitons et comment sont-ils utilisés?

Les renseignements sont recueillis et stockés aux fins suivantes :

- la communication avec les assurés du Lloyd's
- la souscription des polices du Lloyd's
- l'évaluation et le traitement des réclamations
- l'analyse des résultats de l'entreprise
- aux fins requises ou autorisées par la loi

Nous recueillons, traitons et stockons les renseignements personnels suivants à votre sujet :

- Nom
- Adresse, y compris le code postal et le pays
- Numéro de police
- Numéro de demande d'indemnisation
- Détails du dossier de demande d'indemnisation

Nous recueillons également des renseignements personnels à votre sujet lorsque vous visitez www.lloyds.com. Vous trouverez de plus amples informations sur notre politique en matière de cookies en ligne à l'adresse [Vie Privée - Lloyd's \(lloyds.com\)](#).

Nous n'utiliserons pas vos renseignements personnels à des fins de marketing et nous ne vendrons pas vos renseignements personnels à d'autres parties.

À qui divulguons-nous vos renseignements personnels?

Dans le cadre de nos activités générales d'administration et afin de garantir l'efficacité et l'exactitude, vos données personnelles peuvent être partagées avec certains bureaux du Lloyd's. Afin de bien gérer le marché du Lloyd's et d'exercer des pouvoirs de contrôle, nous pouvons partager vos renseignements personnels avec les participants du marché du Lloyd's. Par exemple, pour résoudre une plainte, nous aurons besoin de toutes les informations pertinentes concernant votre couverture et vos préoccupations.

Afin de nous aider à gérer nos activités et à offrir des services, nous pouvons partager vos renseignements personnels avec des fournisseurs de services tiers, tels que des fournisseurs de technologies de l'information et des services d'affaires. Nous exigeons que tous nos prestataires de services tiers préservent la confidentialité et la sécurité des données personnelles qui leur sont confiées.

Nous pouvons être soumis à des obligations légales ou réglementaires nous obligeant à partager vos données personnelles avec les tribunaux Canadiens, les régulateurs et les forces de l'ordre.

Les renseignements personnels recueillis par le Lloyd's peuvent être stockés dans plusieurs provinces canadiennes et être traités dans les bureaux du Lloyd's situés à l'extérieur du Canada, tels que les États-Unis, le Royaume-Uni et l'Union européenne. La collecte, l'utilisation et la divulgation des renseignements personnels sont soumises aux lois de ces juridictions. En souscrivant une assurance ou en déposant une demande d'indemnisation auprès de certains assureurs du Lloyd's, vous donnez votre consentement explicite au Lloyd's pour la collecte, l'utilisation et la divulgation de renseignements personnels, conformément à la législation en vigueur dans la juridiction concernée.

Pour les raisons énoncées ci-dessus, les renseignements personnels peuvent être divulgués aux organisations ou sociétés liées ou affiliées au Lloyd's, à leurs agents/mandataires, ainsi qu'à certains fournisseurs de technologies de l'information et prestataires de services aux entreprises. Puisque certains prestataires de services aux entreprises et entités se situent à l'extérieur du Canada, notamment aux États-Unis ou dans une autre juridiction étrangère telle que le Royaume-Uni et l'Union européenne, la collecte, l'utilisation et la divulgation des renseignements personnels seront assujetties aux lois de cette juridiction. En souscrivant une assurance ou en déposant une demande d'indemnisation, vous donnez votre consentement explicite au Lloyd's pour la collecte, l'utilisation et la divulgation de renseignements personnels, conformément à la législation en vigueur dans la juridiction concernée.

Utilisation ou divulgation sans consentement ou notification ultérieure

Les renseignements personnels peuvent être utilisés à des fins autres que celles pour lesquelles ils ont été recueillis à l'origine, sans le consentement du client, dans les situations suivantes :

- À des fins professionnelles légitimes: Lorsque qu'il est nécessaire à la distribution ou à la livraison d'un produit ou à la distribution d'un service que vous avez demandé. Nous pouvons également être tenus de partager des renseignements pour enquêter sur des allégations de fraude, lorsque la loi l'autorise ou l'exige, pour protéger et défendre des actions en justice et, à la demande d'institutions gouvernementales, conformément aux lois applicables.
- Pour l'intérêt de l'individu : Lorsque l'information est clairement utilisée pour votre bénéfice.
- À des fins de recherche, d'analyse de données et d'intelligence artificielle : Si les informations sont utilisées à des fins cohérentes avec celles pour lesquelles elles ont été collectées, à des fins d'étude ou de recherche, ou à des fins statistiques (lorsque les informations ont été dépersonnalisées).

Conservation

Pour les raisons indiquées ci-dessus, nous conservons les renseignements personnels aussi longtemps que nécessaire. Nous conserverons également l'information aussi longtemps que l'exigent les obligations réglementaires ou légales.

Vos droits

En tant qu'individu, vous disposez de certains droits que vous pouvez exercer en ce qui concerne les renseignements personnels que nous détenons à votre sujet. Si vous faites une demande pour exercer l'un de vos droits, nous nous réservons le droit de vous demander une preuve de votre identité. Nous nous efforçons d'accuser réception de votre demande dès que possible et de répondre à votre requête dans un délai d'un mois à compter de votre demande.

Vous disposez des droits suivants:

Le droit d'accès

Vous avez le droit d'obtenir une confirmation sur la manière dont nous traitons vos données, une copie de vos données personnelles et des informations sur les fins de traitement, à qui nous divulguons vos données, si nous les transférons à l'étranger et comment nous les protégeons, pendant combien de temps nous les conservons, les droits dont vous disposez, d'où proviennent vos données et comment vous pouvez déposer une plainte.

Nous pouvons refuser une demande en raison de restrictions légales. Ces restrictions peuvent inclure, entre autres, ce qui suit :

- l'information est confidentielle et est soumise au secret professionnel,
- la divulgation de l'information révélerait des renseignements personnels au sujet d'un tiers, ou
- la divulgation de l'information pourrait compromettre l'enquête d'une demande d'indemnisation.

Le droit de rectification

Vous avez le droit de nous demander de rectifier des données personnelles que vous jugez inexactes ou incomplètes.

Le droit de suppression

Si vous retirez votre consentement, si vous mettez fin à un contrat avec nous ou si vous jugez que les renseignements personnels ne sont plus nécessaires aux fins pour lesquelles ils ont été recueillis, vous pouvez demander que vos données soient supprimées. Toutefois, cela devra être évalué en fonction d'autres facteurs. Par exemple, certaines obligations réglementaires peuvent nous empêcher de mener à bien votre demande.

Le droit à la portabilité des données

Si nous avons recueilli vos renseignements en vertu d'un contrat ou de votre consentement, vous avez le droit de demander que nous transférions les données personnelles que vous nous avez fournies à une autre organisation de votre choix.

Le droit de retirer son consentement

Si nous avons traité vos renseignements personnels avec votre consentement, vous avez le droit de retirer votre consentement à la communication ou à l'utilisation des informations collectées, à condition qu'elles ne soient plus nécessaires aux fins pour lesquelles elles ont été recueillies.

Comment accéder à vos renseignements personnels et/ou nous contacter

Pour de plus amples informations sur la gestion des renseignements personnels par le Lloyd's, pour demander l'accès, la correction ou la suppression de ces renseignements, ou encore pour déposer une plainte, veuillez contacter:

Les Souscripteurs du Lloyd's

À l'attention de: Nicole Seymour, Responsable de la protection des renseignements personnels

Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930,

P.O. Box 51 Toronto, Ontario M5J 2J2

Tél: 1-416-360-1512

Courriel: LloydsCanada@lloyds.com

08/23

LSW1543E-16

CODE OF CONSUMER RIGHTS AND RESPONSIBILITIES - LSW1565C

Insurers (including Lloyd's Underwriters), along with the brokers and agents who sell home, auto and business insurance are committed to safeguarding your rights both when you shop for insurance and when you submit a claim following a loss. Your rights include the right to be informed fully, to be treated fairly, to timely complaint resolution, and to privacy. These rights are grounded in the contract between you and your insurer and the insurance laws of your province. With rights, however, come responsibilities including, for example, the expectation that you will provide complete and accurate information to your insurer. Your policy outlines other important responsibilities. Insurers and their distribution networks, and governments also have important roles to play in ensuring that your rights are protected.

Right to Be Informed

You can expect to access clear information about your policy, your coverage, and the claims settlement process. You have the right to an easy-to-understand explanation of how insurance works and how it will meet your needs. You also have a right to know how insurers calculate price based on relevant facts. Under normal circumstances, insurers will advise an insurance customer or the customer's intermediary of changes to, or the cancellation of a policy within a reasonable prescribed period prior to the expiration of the policy, if the customer provides information required for determining renewal terms of the policy within the time prescribed, which could vary by province, but is usually 45 days prior to expiry of the policy.

You have the right to ask who is providing compensation to your broker or agent for the sale of your insurance. Your broker or agent will provide information detailing for you how he or she is paid, by whom, and in what ways.

You have a right to be told about insurers' compensation arrangements with their distribution networks. You have a right to ask the broker or agent with whom you deal for details of how and by whom it is being paid. Brokers and agents are committed to providing information relating to ownership, financing, and other relevant facts.

Responsibility to Ask Questions and Share Information

To safeguard your right to purchase appropriate coverage at a competitive price, you should ask questions about your policy so that you understand what it covers and what your obligations are under it. You can access information through one-on-one meetings with your broker or agent. You have the option to shop the marketplace for the combination of coverages and service levels that best suits your insurance needs. To maintain your protection against loss, you must promptly inform your broker or agent of any change in your circumstances.

Right to Complaint Resolution

Insurers, their brokers and agents are committed to high standards of customer service. If you have a complaint about the service you have received, you have a right to access Lloyd's Underwriters' complaint resolution process for Canada. Your agent or broker can provide you with information about how you can ensure that your complaint is heard and promptly handled. Consumers may also contact their respective provincial insurance regulator for information. Lloyd's is a member of an independent complaint resolution office, the General Insurance OmbudService.

Responsibility to Resolve Disputes

You should always enter into the dispute resolution process in good faith, provide required information in a timely manner, and remain open to recommendations made by independent observers as part of that process.

Right to Professional Service

You have the right to deal with insurance professionals who exhibit a high ethical standard, which includes acting with honesty, integrity, fairness and skill. Brokers and agents must exhibit extensive knowledge of the product, its coverages and its limitations in order to best serve you.

Right to Privacy

Because it is important for you to disclose any and all information required by an insurer to provide the insurance coverage that best suits you, you have the right to know that your information will be used for the purpose set out in the privacy statement made available to you by your broker, agent or insurance representative. This information will not be disclosed to anyone except as permitted by law. You should know that Lloyd's Underwriters are subject to Canada's privacy laws - with respect to their business in Canada.

CODE DES DROITS ET RESPONSABILITÉS DU CONSOMMATEUR - LSW1565C-16

Les assureurs (y compris les Souscripteurs du Lloyd's), de même que les courtiers et agents qui font souscrire des polices d'assurance habitation, automobile et entreprise, tiennent à protéger vos droits tant que lorsque vous cherchez une assurance que lorsque vous présentez une demande d'indemnité à la suite d'un sinistre. Vous avez notamment droit à une information complète, à un traitement équitable, à un règlement diligent de vos plaintes et à la protection des renseignements personnels qui vous concernent. Ces droits sont fondés sur le contrat conclu entre vous et votre assureur et sur les lois de votre province en matière d'assurance. Cependant, les droits s'accompagnent de responsabilités. On s'attend par exemple à ce que vous fournissiez des renseignements complets et exacts à votre assureur. D'autres responsabilités importantes sont décrites dans votre police. Les assureurs et leurs réseaux de distribution ainsi que les gouvernements ont également un rôle important dans la protection de vos droits.

Droit d'être informé

Vous pouvez vous attendre à des renseignements clairs sur votre police, votre protection et le processus de règlement des sinistres. Vous avez droit à des explications claires sur le fonctionnement de l'assurance et la façon dont elle répond à vos besoins. Vous avez également le droit de savoir comment les assureurs calculent le prix à partir de faits pertinents. Normalement, les assureurs donnent au client ou à son intermédiaire un préavis raisonnable (dont la durée est fixée par la loi) du non-renouvellement de son assurance ou des modifications prenant effet au renouvellement pourvu que le client fournisse les renseignements nécessaires à l'établissement des conditions de renouvellement au moins 45 jours (ou le nombre de jours fixé dans la loi) avant l'expiration du contrat.

Vous avez le droit de demander qui rémunère votre courtier ou agent pour la souscription de votre assurance. Votre courtier ou agent vous expliquera comment il est rémunéré, par qui et sous quelles formes.

Vous avez le droit de connaître les ententes de rémunération conclues par les assureurs avec leurs réseaux de distribution. Vous avez le droit de demander à votre courtier ou agent de vous expliquer comment et par qui il est payé. Les courtiers et les agents doivent fournir les renseignements concernant la propriété, le financement et autres faits pertinents.

Responsabilité de poser des questions et de fournir des renseignements

Pour protéger votre droit à la souscription d'une assurance appropriée à un prix concurrentiel, vous devez poser des questions sur votre police afin de comprendre la protection qu'elle vous procure et les obligations qu'elle vous impose. Vous pouvez obtenir des renseignements dans le cadre de rencontres en tête-à-tête avec votre courtier ou agent. Vous êtes libre de faire le tour du marché de manière à obtenir la combinaison de garanties et de services qui répond le mieux à vos besoins. Pour conserver votre protection contre les sinistres, vous devez informer sans délai votre courtier ou agent de tout changement dans votre situation.

Droit au règlement des plaintes

Les assureurs, leurs courtiers et leurs agents s'imposent des normes élevées en matière de service à la clientèle. Si vous avez à vous plaindre du service que vous avez reçu, vous avez le droit de recourir au processus de règlement des plaintes des Souscripteurs du Lloyd's pour le Canada. Votre courtier ou agent peut vous expliquer ce que vous devez faire pour que votre plainte soit entendue et traitée rapidement. Les consommateurs peuvent aussi consulter l'autorité de réglementation de l'assurance de leur province. Le Lloyd's est membre d'un organisme de règlement des plaintes indépendant, le Service de conciliation en assurance de dommages."

Responsabilité de régler les différends

Vous devez toujours vous engager de bonne foi dans le processus de règlement des différends, fournir promptement les renseignements demandés et être ouvert aux recommandations formulées par des observateurs indépendants dans le cadre de ce processus.

Droit à un service professionnel

Vous avez le droit de traiter avec des professionnels de l'assurance qui observent des normes déontologiques rigoureuses et agissent avec honnêteté, intégrité, équité et compétence. Les courtiers et agents d'assurance doivent démontrer une connaissance approfondie du produit, de ses garanties et de ses restrictions afin de vous offrir un service optimal.

Droit à la protection des renseignements personnels

Étant donné qu'il est important que vous communiquiez à l'assureur tous les renseignements dont il a besoin pour vous fournir la protection qui vous convient le mieux, vous avez le droit de savoir que les renseignements qui vous concernent seront utilisés uniquement aux fins décrites dans l'énoncé sur la protection des renseignements personnels mis à votre disposition par votre courtier, agent ou représentant d'assurance. Ces renseignements ne seront communiqués à des tiers que dans la mesure où la loi le permet. Vous devez savoir que, en ce qui concerne leurs affaires canadiennes, les Souscripteurs du Lloyd's sont assujettis aux lois canadiennes régissant la protection des renseignements personnels.

SEVERAL LIABILITY NOTICE

The subscribing insurer's obligations under contracts of insurance to which they subscribe are several and not joint and are limited solely to the extent of their individual subscriptions. The subscribing insurers are not responsible for the subscription of any co-subscribing insurer who for any reason does not satisfy all or part of its obligations.

LSW1001 (Insurance)

COMMUNICABLE DISEASE EXCLUSION

(For use on liability policies)

1. Notwithstanding any provision to the contrary within this policy, this policy does not cover all actual or alleged loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount, directly or indirectly and regardless of any other cause contributing concurrently or in any sequence, originating from, caused by, arising out of, contributed to by, resulting from, or otherwise in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease.

2. For the purposes of this endorsement, loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount, includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor or test for a Communicable Disease.

3. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where: 3.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and 3.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and 3.3. the disease, substance or agent can cause or threaten bodily injury, illness, emotional distress, damage to human health, human welfare or property damage.

LMA5396

17 April 2020

SANCTION LIMITATION CLAUSE (LMA 3100A)

No (re)insurer shall be deemed to provide cover and no (re)insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that (re)insurer to any sanction, prohibition or restriction under United Nations' resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

LMA3100A

5 October 2023

LINE CLAUSE - NMA2419

This Insurance, being signed for 100% of 100% insures only that proportion of any loss, whether total or partial, including but not limited to that proportion of associated expenses, if any, to the extent and in the manner provided in this insurance.

The percentages signed in the Table are percentages of 100% of the amount(s) of Insurance stated herein.

CYBER AND DATA EXCLUSION
(for attachment to Canadian Liability forms)

1. Notwithstanding any provision to the contrary within this Policy or any endorsement thereto this Policy does not apply to any loss, damage, liability, claim, fines, penalties, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any:

1.1 CYBER ACT or CYBER INCIDENT including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any CYBER ACT or CYBER INCIDENT;

1.2 loss of use, reduction in functionality, repair, replacement, restoration, reproduction, loss or theft of any DATA, including any amount pertaining to the value of such DATA; or

1.3 complaint, investigation, or proceedings arising directly or indirectly from a breach or alleged breach of the Personal Information Protection and Electronic Documents Act, the Canada Anti-Spam Legislation, any Privacy Act, or any similar Canadian, Provincial or Territorial statute or regulation, regardless of any other cause or event contributing concurrently or in any other sequence thereto.

2. In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

Definitions

COMPUTER SYSTEM means any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility, owned or operated by the Insured or any other party.

+A2359CYBER ACT means an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any COMPUTER SYSTEM.

CYBER INCIDENT means:

(a) any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any COMPUTER SYSTEM; or

(b) any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any COMPUTER SYSTEM.

DATA means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a COMPUTER SYSTEM.

LMA5528A

15 March 2023

LE8a ADVERTISING LIABILITY EXTENSION

This extension modifies coverage provided by form L1, L1a, L2 and L3, but only if indicated on the Declarations Page for the form.

Various provisions in this extension restrict coverage. Read the entire extension carefully to determine rights, duties and what is and is not covered.

Throughout this extension the words "you" and "your" refer to the Named Insured shown in the Declarations. The words "we", "us" and "our" refer to the Insurer providing this insurance.

The word "insured" means any person or organization qualifying as such under SECTION II - WHO IS AN INSURED.

Other words and phrases that appear in quotation marks have special meaning.

Section I - INSURING AGREEMENT

We will pay those sums that the "Insured" becomes legally obligated to pay as compensatory damages because of "advertising injury" to which this insurance applies. No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under SUPPLEMENTARY PAYMENTS. We will have the right and duty to defend any "action" seeking those compensatory damages but:

- (1) The amount we will pay for compensatory damages is limited as described in SECTION III – LIMITS OF INSURANCE
- (2) We may investigate and settle any claim or "action" at our discretion; and
- (3) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgements or settlements.

This insurance applies to "advertising injury" only if caused by an offence:

- (1) committed in the "coverage territory" during the policy period; and
- (2) arising out of the conduct of your business advertising activities.

We will consider any series of related or similar offences to be one offence.

Section II – ADDITIONAL EXCLUSIONS

This insurance does not apply to:

- (a) liability assumed by the "Insured" under any contract or agreement;
- (b) liability for:
 - (i) failure of performance of any contract or agreement, but this shall not related to claims for unauthorized appropriation of ideas based upon alleged breach of implied contract;
 - (ii) infringement of registered trade mark, service mark or trade name by use thereof as the registered trade mark, service mark or trade name of goods or services sold, offered for sale or advertised;
 - (iii) incorrect description of any article or commodity;
 - (iv) mistake in advertised price;
- (c) any Insured in the business of advertising, broadcasting, video production, publishing or telecasting;
- (d) any injury arising out of any act committed by the "Insured" with actual malice;
- (e) "advertising injury" arising out of
- (f)
 - (i). Comparative advertising by or on behalf of the "Insured";
 - (ii). Oral or written publication of material, if done by or at the direction of the "Insured" with knowledge of its falsity;
 - (iii). Oral or written publication of material whose first publication took place before the beginning of the policy period.

Section III – LIMITS OF INSURANCE

1. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:
2.
 - (a) Insureds;
 - (b) Claims made or "actions brought; or
 - (c) Persons or organizations making claims or bringing "actions".

3. Subject to 3. below, the Advertising injury limit is the most we will pay for the sum of all compensatory damages because of all "advertising injury" sustained by any one person or organization.

4. The advertising aggregate limit is the most we will pay for the sum of all compensatory damages because of "advertising injury".

The advertising Injury Limit applies separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the declarations unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limit of Insurance.

Section IV – DEDUCTIBLE

1. Our obligation under this coverage to pay compensatory damages on your behalf applies only to the amount of compensatory damages in excess of the deductible amount shown in the Declarations for this coverage and the limit of insurance applicable to Advertising Injury will be reduced by the amount of such deductible. The Advertising Injury Aggregate Limit shall not be reduced by the application of such deductible amount.

2. The deductible amount shown in the Declarations for this coverage applies to all compensatory damages because of Advertising Injury as a result of any one "occurrence" regardless of the number of persons or organizations who sustain damage because of that "occurrence".

3. The terms of this insurance, including those with respect to our right and duty to defend any "action" seeking those compensatory damages and your duties in the event of an "occurrence", claim or "action", apply irrespective of the application of the deductible amount.

4. We may pay any part or all of the deductible amount to effect settlement of any claim or "action" and, upon notification of the action taken, you will promptly reimburse us for such part of the deductible amount as has been paid by us.

Section V – ADDITIONAL DEFINITIONS

"Action" means a civil proceeding in which compensatory damages because of "bodily injury", "property damage" or "personal injury" to which this insurance applies are alleged. "Action" includes an arbitration proceeding alleging such damages to which you must submit or submit with our consent.

"Advertising Injury" means injury, other than "bodily injury" or "property damage", arising out of one or more of the following offenses in the conduct of your advertising, promotional or publicity activities:

- (a) Oral or written publication of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services; or
- (b) Oral or written publication of material that violates a person's right of privacy;
- (c) Piracy, unfair competition, idea misappropriation under an implied contract, or infringement of copyright, title or slogan.

"Bodily Injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.

"Coverage territory" means:

- a. Canada and the United States of America (including its territories and possessions);
- b. International waters or airspace, provided the injury or damage does not occur in the course of travel or transportation to or from any place not included in a. above; or
- c. All parts of the world if:
 - 1) The injury or damage arises out of:
 - a) Goods or products made or sold by you in the territory described in a. above; or
 - b) The activities of a person whose home is in the territory described in a. above, but is away for a short time on your business; and
 - 2) The Insured's responsibility to pay compensatory damages is determined in an "action" on the merits, in the territory described in a. above or in a settlement we agree to in writing.

Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

"Property damage" means:

- a. Physical injury to tangible property, including all resulting loss of use of that property; or
- b. Loss of use of tangible property that is not physically injured.

Section VI – OTHER TERMS AND CONDITIONS

Except as specifically modified in this extension, all the conditions, definitions, exclusions, provisions and terms of the Commercial General Liability policy apply to the coverage provided by this extension.

All other terms and conditions of this policy remain unchanged.

FOREST FIRE FIGHTING EXPENSE ENDORSEMENT

Applicable to Commercial General Liability Insurance: FOREST FIRE FIGHTING EXPENSE

1. Insuring Agreement

We will pay those sums for Forest Fire Fighting Expenses that you become obligated to pay by reason of liability imposed upon you by law or statute pursuant to the relevant provisions of the Forest Fire and Prairie Protections Act of the Provinces and Territories of Canada.

2. Limit of Liability

The limit of insurance stated on the Declarations page is the most we will pay for all Forest Fire Fighting Expenses in one policy period.

3. Deductible

Our obligation to pay damages on your behalf applies only to the amount of damages in excess of any Fire Fighting Expense Deductible stated on the Declarations page.

4. Exclusions

This insurance does not apply to:

- (a) any of your fire fighting expenses or of your employees or agents;
- (b) any fire fighting expenses of contractors or subcontractors already engaged by you, in connection with the contract out of which the loss occurs;
- (c) Any expense, fine or penalty for which you are liable by reason of your failure to comply with any statute, permit, rule or regulation;
- (d) liability assumed by you under any contract or agreement, except liability of the Insured that would have existed in the absence of such contract or agreement;
- (e) any action brought against any of the insureds by any other insured or insured(s) under this Policy with respect to the recovery of fire fighting expenses;
- (f) any fire fighting expenses of others on your behalf where more specific coverage has been purchased and is available to you.

5. Conditions

Coverage provided by this endorsement will apply as excess over any valid and collectible insurance covering Forest Fire Fighting Expenses.

All other terms and conditions of the policy remain unchanged.

The Statutory Conditions contained herein shall supersede, supplement or add to any existing conditions contained within this policy and are applicable to the Provinces of British Columbia, Alberta and Manitoba according to law.

STATUTORY CONDITIONS (Applicable to British Columbia, Alberta and Manitoba)

Property of others

1. The insurer is not liable for loss or damage to property owned by a person other than the insured unless
 - (a) otherwise specifically stated in the contract, or
 - (b) the interest of the insured in that property is stated in the contract.

Change of interest

2. The insurer is liable for loss or damage occurring after an authorized assignment under Bankruptcy and Insolvency Act (Canada) or a change of title by succession, by operation of law or by death.

Material change in risk

3.
 - (1) The insured must promptly give notice in writing to the insurer or its agent of a change that is
 - (a) material to the risk, and
 - (b) within the control and knowledge of the insured.
 - (2) If an insurer or its agent is not promptly notified of a change under subparagraph (1) of this condition, the contract is void as to the part affected by the change.
 - (3) If an insurer or its agent is notified of a change under subparagraph (1) of this condition, the insurer may
 - (a) terminate the contract in accordance with Statutory Condition 5, or
 - (b) notify the insured in writing that, if the insured desires the contract to continue in force, the insured must, within 15 days after receipt of the notice, pay to the insurer an additional premium specified in the notice.
 - (4) If the insured fails to pay an additional premium when required to do so under subparagraph (3)(b) of this condition, the contract is terminated at that time and Statutory Condition 5(2)(a) applies in respect of the unearned portion of the premium.

Termination of insurance

4.
 - (1) The contract may be terminated
 - (a) by the insurer giving to the insured 60 days' notice of termination by registered mail or 15 days' notice of termination by registered mail for non-payment of premium due or 5 days' written notice of termination personally delivered, or
 - (b) by the insured at any time on request.
 - (2) If the contract is terminated by the insurer,
 - (a) the insurer must refund the excess of premium actually paid by the insured over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the contract, and
 - (b) the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.
 - (3) If the contract is terminated by the insured, the insurer must refund as soon as practicable the excess of premium actually paid by the insured over the short rate premium for the expired time specified in the contract, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the contract.
 - (4) The 15 day period referred to in subparagraph (1)(a) of this condition starts to run on the day the registered letter or notification of it is delivered to the insured's postal address.

Notice

- (1) Written notice to the insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the insurer in the province.
 - (2) Written notice to the insured may be personally delivered at, or sent by registered mail addressed to, the insured's last known address as provided to the insurer by the insured.

BLANKET ADDITIONAL INSURED

It is hereby agreed that any owner, person, firm, organization, trustee, estate or governmental entity to whom or to which the Named Insured has contracted to effect insurance by virtue of a contract of agreement or by the issuance or existence of a permit. But the insurance provided for such additional insured is restricted to apply solely to liability arising out of operations performed under said contract and only to the extent required by such contract;

Where the Broker of record has issued a certificate of insurance and filed a copy of a certificate of insurance no later than fourteen (14) days following the date of issue, notice in the event of cancellation or a material change, not exceeding 30 days, shall be granted to the address of the certificate holder as shown on the certificate of insurance.

BLANKET WAIVER OF SUBROGATION

With respect to liability arising out of the operations of the insured, the Insurer agrees to waive its rights of subrogation that it may have under this policy provided that:

The Insured has similarly waived such rights of subrogation in a contract or agreement that has been entered into in writing prior to the occurrence giving rise to a claim; and

The waiver shall apply only in favour of the person, firm, corporation, government body or entity named.

At all times Underwriters retain the right to seek recourse against in the event of any alleged wrongful information provided to the Insured and/or contributory act of negligence.

All other policy terms, conditions, provisions, definitions and exclusions shall remain unchanged.

SUB-CONTRACTOR WARRANTY

The Named Insured will obtain proof of valid commercial general liability insurance from each contractor or sub-contractor retained by or on behalf of any Insured. Such insurance shall apply to liability arising out of each contractor's or sub-contractor's operations for or on behalf of any Insured and will:

- a. Provide a limit of liability of not less than \$2,000,000 limit;
- b. Be maintained in force for the full period of time during which operations are performed by the contractor or sub-contractor; and
- c. Name the Named Insured as an additional insured thereunder.

Failure of the Insured to comply with the above provision will render this Policy null and void in the event of liability based on, attributable to, arising out of or in any way related, either directly or indirectly, to the operations of contractors or sub-contractors for or on behalf of the Insured.

MINIMUM EARNED PREMIUM / COMMISSION CLAUSE

In consideration of the premium charged, it is agreed that in the event of cancellation of this insurance by the Named Insured, return premium shall be computed in accordance with the conditions attached herein, subject however to a retention by Underwriters of not less than the minimum retained of the annual premium as stated on the declaration page of this policy.

The commission will be deemed to be fully earned commission, earned in full at inception by the London Broker, and will be subtracted from any return premium due.

Nothing in this statement is deemed to affect the Underwriters' cancellation rights, as described more fully herein.

FRAUDULENT CLAIM CLAUSE

If the (re)insured shall make any claim knowing the same to be false or fraudulent, as regards amount or otherwise, this contract shall become void and all claim hereunder shall be forfeited.

SHORT RATE CANCELLATION TABLE

Notwithstanding anything to the contrary contained herein and in consideration of the premium for which this Insurance is written it is agreed that in the event of cancellation thereof by the **Insured** the Earned Premium shall be computed as follows:

SHORT RATE CANCELLATION TABLE

A. For insurances written for one year:

Days Insurance in Force	Per cent. of One Year Premium	Days Insurance in Force	Per cent. of One Year Premium
1 - 73	30	206 - 209	66
74 - 76	31	210 - 214 (7 months)	67
77 - 80	32	215 - 218	68
81 - 83	33	219 - 223	69
84 - 87	34	224 - 228	70
88 - 91 (3 months)	35	229 - 232	71
92 - 94	36	233 - 237	72
95 - 98	37	238 - 241	73
99 - 102	38	242 - 246 (8 months)	74
103 - 105	39	247 - 250	75
106 - 109	40	251 - 255	76
110 - 113	41	256 - 260	77
114 - 116	42	261 - 264	78
117 - 120	43	265 - 269	79
121 - 124 (4 months)	44	270 - 273 (9 months)	80
125 - 127	45	274 - 278	81
128 - 131	46	279 - 282	82
132 - 135	47	283 - 287	83
136 - 138	48	288 - 291	84
139 - 142	49	292 - 296	85
143 - 146	50	297 - 301	86
147 - 149	51	302 - 305 (10 months)	87
150 - 153 (5 months)	52	306 - 310	88
154 - 156	53	311 - 314	89
157 - 160	54	315 - 319	90
161 - 164	55	320 - 323	91
165 - 167	56	324 - 328	92
168 - 171	57	329 - 332	93
172 - 175	58	333 - 337 (11 months)	94
176 - 178	59	338 - 342	95
179 - 182 (6 months)	60	343 - 346	96
183 - 187	61	347 - 351	97
188 - 191	62	352 - 355	98
192 - 196	63	356 - 360	99
197 - 200	64	361 - 365 (12 months)	100
201 - 205	65		

B. For Insurances written for more or less than one year:

1. If insurance has been in force for 12 months or less, apply the standard short rate table for annual insurances to the full annual premium determined as for an insurance written for a term of one year.
2. If insurance has been in force for more than 12 months:
 - (a) Determine full annual premium as for an insurance written for a term of one year.
 - (b) Deduct such premium from the full insurance premium, and on the remainder calculate the pro rata Earned Premium on the basis of the ratio of the length of

time beyond one year the insurance has been in force to the length of time beyond one year for which the insurance was originally written.

- (c) Add premium produced in accordance with items (a) and (b) to obtain Earned Premium during full period insurance has been in force.

Furthermore and notwithstanding the foregoing, the Underwriters shall retain the total premium for this Policy, such total premium to be deemed earned upon inception of the Policy if any **Claim** or **Circumstance** is reported to the Underwriters under this Policy on or before such date of cancellation.

CROSS LIABILITY CLAUSE

In the event of claim by one Insured for which another Insured covered by the same policy may be held liable, this endorsement covers the Insured against whom the claim is made in the same manner as if separate policies had been issued. However, it does not operate to increase the Insurer's overall limit of liability.

Non-Owned Automobile Liability (QPF 6) L20

INSURING AGREEMENT

Now, therefore, subject to the limits, terms and conditions, provisions, definitions and exclusions herein stated.

SECTION A – CIVIL LIABILITY

The Insurer agrees to indemnify the Insured, the Insured's succession or legal representatives against the pecuniary consequences of civil liability the Insured may incur for loss or damage arising from the use or operation in the business described in the Declarations of any automobile not owned (in whole or in part) by or registered in the name of the Insured, and resulting from bodily injury to or death of others or damage to property of others not in the care, custody or control of the Insured. However, where the loss exceeds the amounts of insurance, the indemnity shall be applied first to the pecuniary consequences of civil liability incurred by the Named Insured.

EXCLUSION

The Insurer shall not be liable under this section:

- (1) except where the Automobile Insurance Act does not apply, for bodily injury or death covered under the said Act, the Act respecting industrial accidents and occupational diseases or the Crime Victims Compensation Act;
- (2) for any liability which arises from the use or operation of any automobile while personally driven by the Insured if the Insured is an individual;
- (3) for any liability imposed by any workmen's compensation law upon any person insured by this section;
- (4) for loss or damage sustained by the Insured or any employee, shareholder, officer, member, partner or mandatory of the Insured while engaged in the business of the Insured, except as provided under a Direct Compensation Agreement established in accordance with the aforementioned Automobile Insurance Act;
- (5) for any liability assumed voluntarily by any person insured by this section under any contract or agreement;
- (6) for loss or damage to property carried in or upon an automobile personally driven by any person insured by this section or to any property owned or rented by, or in the care, custody or control of any such person;
- (7) for any sum in excess of the amount stated in section A of Item 7 of the Declarations, and expenditures provided for in the Additional Agreements of this section, irrespective of the number of persons or interests insured;
- (8) for any loss or damage resulting from bodily injury to or death of any person or damage to property arising out of a nuclear energy hazard and in excess of the compulsory amount of liability insurance prescribed by the Automobile Insurance Act or the Act respecting off-highway vehicles, depending on the type of vehicle involved.

See also General Provisions, Definitions, Exclusions and Conditions

ADDITIONAL AGREEMENTS

Where indemnity is provided by this section the Insurer further agrees:

- (1) immediately upon receipt of notice of loss, to serve any person insured by this section by such investigation thereof, or by such transactions with the claimant, or by such settlement of any resulting claims, as may be deemed expedient by the Insurer;
- (2) to take up the interest of any person entitled to the benefit of the insurance and assume his defense in any action which may be brought against him;
- (3) bear, over and above the proceeds of the insurance, costs and expenses resulting from actions against the Insured, including those of the defense, and interest on the proceeds of the insurance;
- (4) if the injury is to a person, to reimburse any person insured by this section for expenses incurred for such medical aid as may be immediately necessary at the time of such injury;
- (5) to be liable up to the minimum amount(s) of liability insurance prescribed by any legislation respecting Automobile Insurance and applying in that province or territory of Canada or in that State of the United States of America in which the accident occurred, if that amount(s) is higher than the amount(s) stated in section A of Item 7 of the Declarations;
- (6) not to set up any defense to a claim that might not be set up if the policy were a motor vehicle liability policy issued in the province or territory of Canada or in the State of the United States of America in which the accident occurred.

AGREEMENTS OF INSURED

Where indemnity is provided by this section, every person insured:

- (a) empowers the Insurer as their representative to appear and defend in any province or territory of Canada or in any State of the United States of America in which action is brought against the Insured arising out of the use or operation of an automobile with respect to which insurance is provided hereunder;
- (b) renounces his right to unilaterally revoke such mandate;
- (c) shall reimburse the Insurer, upon demand, in the amount which the Insurer has paid by reason of the provisions of any statute relating to automobile insurance and which the Insurer would not otherwise be liable to pay under this section.

GENERAL PROVISIONS, DEFINITIONS AND EXCLUSIONS

1. TERRITORY

Unless extended by endorsement, insurance provided by this contract applies only within Canada, the United States of America and upon a vessel and/or aircraft serving ports or airports of those countries.

2. PERSONNEL OF OTHER GARAGES EXCLUDED

No person who is engaged in a garage business, shall be entitled to indemnity or payment under this contract for any loss, damage, injury or death sustained while using, operating or working upon the automobile in the course of that business or while so engaged is an occupant of or enters or gets onto or alights from such automobile, unless the person is the Insured or the Insured's employee, shareholder, member, partner or mandatory or is actually driving the automobile in Quebec.

3. DEFINITIONS

In this policy:

- a) the term garage business includes any business involving the custody, selling, equipping, repairing, maintaining, storing, parking, moving or servicing of automobiles;
- b) the term hired automobiles means automobiles hired or leased from others with or without drivers, used under the control of the Insured in the business stated in Item 3 of the Declarations but shall not include any automobile owned in whole or in part by or registered in the name of the Named Insured or any employee, shareholder, officer, member, partner or mandatory of the Insured;
- c) the term automobiles operated under contract shall mean automobiles operated in the business of the Insured stated in Item 3 of the Declarations where the complete supervision, direction and control of such automobiles remain with the owner thereof, but shall not include any automobile owned in whole or in part by or registered in the name of the Named Insured or any employee, shareholder, officer, member, partner or mandatory of the Insured;
- d) the words nuclear energy hazard mean the radioactive, toxic, explosive or other hazardous properties of prescribed substances under the Atomic Energy Control Act (Canada).

4. TWO OR MORE AUTOMOBILES

a) When two or more automobiles are insured hereunder the terms of this contract shall apply separately to each, but a motor vehicle and one or more trailer or trailers or semi-trailers attached thereto shall be held to be one automobile with respect to the amounts of insurance under section A. Where two or more automobiles are insured under one or more contracts issued by the same insurer, only one amount of insurance, the highest, shall apply in the event of loss under section A.

b) If section B is included in this policy through endorsement Q.E.F. No. 6-94, Civil Liability for damage to hired automobiles and/or automobiles operated under contract, such automobiles shall be held to be separate automobiles with respect to the amount(s) of insurance, including any deductible provisions, under section B.

c) Section A shall apply to the Insured's liability for damage caused to a non-owned trailer, other than a trailer designed or used to carry passengers or for demonstration, sale, office or dwelling purposes, while:

- (i) attached to an automobile of the private passenger type insured under said section;
- (ii) not attached to any other vehicle, provided such trailer is generally attached to an automobile of the private passenger type insured under said section.

5. ADDITIONAL INSURED

This contract also insures every employee, shareholder, officer, member, partner or mandatory of the Named Insured, who, with the consent of the owner of the automobile involved:

a) and in the business of the Named Insured stated in Item 3 of the Declarations, personally drives any automobile not owned in whole or in part by or registered in the name of (1) the Named Insured, or (2) such additional insured person, or (3) any person having the same domicile as the Named Insured or such additional insured person;

b) any automobile rented or hired in the name of the Named Insured and not owned in whole or in part by or registered in the name of such additional insured person.

6. PREMIUM ADJUSTMENT

The advance premiums stated in Items 5 and 6 of the Declarations and in Q.E.F. No. 6-94, if applicable, are computed on the estimated total "cost of hire" or "contract cost", as the case may be, for the contract period. The words "cost of hire" as used herein mean the entire amount incurred for "hired automobiles" and drivers when such automobiles are hired with drivers or the amount incurred for hired automobiles and the wages paid to drivers when such drivers are employees of the Insured. The words "contract cost" as used herein mean the entire amount paid by the Insured for "automobiles operated under contract" to the owners thereof. The advance premiums are subject to adjustment at the end of the contract period when the Insured shall deliver to the Insurer a written statement of the total amounts expended for "cost of hire" and "contract cost" during the contract period based on the provisions contained in Q.E.F. No. 6-100, Final adjustment of premium computation statement.

7. AUDIT

Provided the Insured has authorized the Insurer in writing, the Insurer may at any time during regular business hours and upon fourteen days' prior notice examine the books and records of the Insured insofar as they relate to the subject matter of the contract.

8. CROSS LIABILITY

Every Named Insured sustaining loss or damage because of another Named Insured shall, in respect of such loss or damage, be deemed to be a third party under this contract; provided that this provision shall not operate to increase the limit of the Insurer's liability.

9. EXCLUDED USES

Unless coverage is indicated in the Declarations or expressly given by an endorsement, the Insurer shall not be liable under this contract while:

a) the automobile is rented or leased to another;

b) the automobile is used to carry explosives, or to carry radioactive material for research, education, development or industrial purposes, or for purposes incidental thereto;

c) the automobile is used as a taxicab, bus, livery or sightseeing conveyance.

CONDITIONS This contract is subject to the Civil Code of Quebec, the Code of Civil Procedure of Quebec, the Automobile Insurance Act and its regulations and the Act respecting off-highway vehicles if applicable.

1. REPRESENTATION OF RISK

The client, and the Insured if the Insurer requires it, is bound to represent all the facts known to him which are likely to materially influence an insurer in the setting of the premium, the appraisal of the risk or the decision to cover it, but he is not bound to represent facts known to the Insurer or which from their notoriety he is presumed to know, except in answer to inquiries. The client means the person submitting an insurance application.

2. MATERIAL CHANGE IN RISK

The Insured shall promptly notify the Insurer of any change that increases the risks stipulated in the policy and that results from events within his control if it is likely to materially influence an insurer in setting the rate of the premium, appraising the risk or deciding to continue to insure it. On being notified of any material change in the risk, the Insurer may, under Condition 21, cancel the contract or propose, in writing, a new rate of premium. Unless the new premium is accepted and paid by the Insured within thirty days of the proposal, the policy ceases to be in force. If the Insurer continues to accept the premiums or if he pays an indemnity after a loss, he is deemed to have acquiesced in the change notified to him.

3. MISREPRESENTATIONS OR CONCEALMENT

Section A of the policy may be nullified at the instance of the Insurer where the Insured or the client has misrepresented or concealed relevant facts mentioned in Condition 1 and in the first paragraph of Condition 2 which are likely to materially influence a reasonable insurer in the decision to cover the risk. Unless such misrepresentation or concealment is established, the Insurer remains liable towards the Insured for such proportion of the indemnity as the premium he collected bears to the premium he should have collected.

Section B of endorsement Q.E.F. No. 6-94 may be nullified at the instance of the Insurer where the Insured or the client has misrepresented or concealed relevant facts mentioned in Condition 1 and in the first paragraph of Condition 2 which are likely to materially influence a reasonable insurer, even in respect of losses not connected with the risk so misrepresented or concealed. Unless the bad faith of the Insured or the client is established or unless it is established that the Insurer would not have covered the risk if he had known the true facts, the Insurer remains liable towards the Insured for such proportion of the indemnity as the premium he collected bears to the premium he should have collected.

4. BREACH OF WARRANTY

A breach of warranty aggravating the risk suspends the coverage. The suspension ceases upon the acquiescence of the Insurer or the remedy of the breach.

5. PROHIBITED USE

The Insured shall not drive or operate the automobile nor permit the use of the automobile by others:

a) unless the driver is for the time being authorized by law or qualified to drive or operate the automobile, or while he is under 16 years of age or under such other age as is prescribed by law to drive an automobile;

b) for any illicit trade or transportation;

c) in any race or speed test.

6. INSPECTION OF AUTOMOBILE

The Insurer shall be permitted at all reasonable times to inspect the automobile and its equipment.

7. NOTICE OF LOSS

The Insured shall notify the Insurer of any loss which may give rise to an indemnity, as soon as he becomes aware of it. Any interested person may give such notice.

The failure to fulfil the obligation set out in the preceding paragraph entails forfeiture of the right to indemnity where such failure has caused prejudice to the Insurer.

8. INFORMATION TO BE PROVIDED

At request of the Insurer, the Insured shall inform the Insurer as soon as possible of all the circumstances surrounding the loss, including its probable cause, the nature and extent of the damage, the location of the insured property, the rights of third parties, and any concurrent insurance; he shall also furnish him with vouchers and swear or warrant to the truth of the information. Where, for a serious reason, the Insured is unable to fulfil such obligation, he is entitled to a reasonable time in which to do so. If the Insured fails to fulfil his obligation, any interested person may do so on his behalf. In addition, the Insured shall forthwith send to the Insurer a copy of any notice, letter, summons or proceeding received in connection with a claim.

9. DECEITFUL REPRESENTATION

Any deceitful representation relating to a loss entails the loss of the right of the person making it to any indemnity in respect of the risk to which the representation relates. However, if the occurrence of the event insured against entails the loss of both property for occupational use and personal property, forfeiture is incurred only with respect to the class of property to which the representation relates.

10. ABANDONMENT, SAFEGUARDING AND EXAMINATION OF PROPERTY

The Insured may not abandon the damaged property if there is no agreement to that effect with the Insurer. The Insured shall facilitate the salvage and inspection of the insured property by the Insurer. He shall, in particular, permit the Insurer and his representatives to visit the premises and examine the insured automobile and its equipment. In addition, the Insured shall at the expense of the Insurer, and as far as reasonably possible, protect the automobile from further loss or damage, and any such further loss or damage accruing directly or indirectly from a failure to protect shall not be recoverable hereunder. No repairs shall be undertaken or any physical evidence of the loss or damage removed without the written consent of the Insurer, except such repairs as are immediately necessary for the protection of the automobile from further loss or damage, or until the Insurer has had a reasonable time to make the examination provided for in Condition 6.

11. ADMISSION OF LIABILITY AND COOPERATION

No transaction made without the consent of the Insurer may be set up against him. The Insured shall not admit any liability nor settle or attempt to settle any claim, except at his own cost. The Insured shall cooperate with the Insurer in the processing of all claims.

12. VALUATION AND MANNER OF PAYMENT

The Insurer shall not be liable beyond the actual cash value of the automobile at the time any loss or damage occurs, and the loss or damage shall be ascertained or estimated with proper deduction for depreciation, however caused, and shall in no event exceed what it would cost to repair or replace the automobile or any part thereof with material of like kind and quality provided that in the event of any part of the automobile being obsolete and out of stock, the liability of the Insurer in respect thereof shall be limited to the value of such part at the time of loss or damage not exceeding the manufacturer's latest list price. In the event of a total or constructive total loss, the Insurer agrees, at the option of the Insured and subject to supporting evidence, to cover reasonable expenses incurred to restore the automobile to the same condition as it was before the loss. Except where an arbitration has been made and subject to the rights of preferred and hypothecary creditors, the Insurer, instead of making payment may, within a reasonable time, repair, rebuild or replace the property damaged or lost with other of like kind and quality, giving written notice of its intention so to do within seven days after the receipt of the proofs of loss. In all cases, the salvage, if any, shall revert to the Insurer.

13. ARBITRATION IN CASE OF DISAGREEMENT

In the event of disagreement as to the nature, extent or amount of the loss or damage or as to the adequacy of repairs or replacements, such questions shall be determined by arbitration before recovery can be made under this contract, whether the right to recover on this contract is disputed or not, and independently of all other questions. The Insured and the Insurer shall each select one appraiser, and the two so chosen shall then select a disinterested arbitrator. Thereafter the two appraisers together shall estimate or appraise the loss or damage, stating separately sound value and damage, or determine the adequacy of repairs or replacements, and, failing to agree, shall submit their differences to the arbitrator. In case either party fails to name an appraiser within seven clear days after being served with written notice so to do, or in case the appraisers fail to agree upon an arbitrator within fifteen days after their appointment, or in case an appraiser or arbitrator refuses to act or is incapable of acting, or dies, a Judge of a Court having jurisdiction where the arbitration is to be held may appoint such appraiser or arbitrator on the application of the Insured or of the Insurer. The arbitration award shall be made in writing by the two appraisers, or by one appraiser and the arbitrator. For the surplus, the procedure provided in Sections 940 to 951.2 of the Code of Civil Procedure of Quebec shall apply mutatis mutandis. Each party shall pay the appraiser selected by him, and shall bear equally the expenses of the arbitration.

14. NON-WAIVER

Neither the Insurer nor the Insured shall be deemed to have waived any term or condition of this contract by any act relating to arbitration or to the delivery and completion of proofs of loss, or to the investigation or adjustment of the claim.

15. TIME OF PAYMENT

Claims under Section B shall be paid within sixty days after receipt of notice of loss or of information or proof of loss required by the Insurer or, where an arbitration is held, within fifteen days after award is accepted by the Insured.

16. CONTINUATION OF COVERAGE

Coverage is maintained after a loss.

17. PRESCRIPTION

Every action against the Insurer under this contract is prescribed by three years from the date the right of action has arisen.

18. SUBROGATION

The Insurer shall be subrogated to the extent of the amount paid under this contract to the rights of the Insured against persons responsible for the loss except when they are members of the Insured's household.

The Insurer may be fully or partly released from his obligation towards the Insured where, owing to any act of the Insured, he cannot be so subrogated.

19. OTHER LIABILITY INSURANCE

Insurance under a contract evidenced by a valid owner's policy is, in respect of liability arising from or occurring in connection with the ownership, use or operation of an automobile owned by the Insured named in the policy and within the description or definition thereof in the policy, a first loss insurance, and insurance attaching under any other valid motor vehicle liability policy is excess insurance only. However, insurance evidenced by a valid garage policy, not describing the specific automobile(s) insured, shall in respect to non-owned or customers' automobiles while being used, operated or worked upon in the course of the policyholder's business as a garage be a first loss insurance and insurance attaching under any other valid motor vehicle policy shall be excess insurance only.

20. RENEWAL OF CONTRACT

This contract shall be renewed of right, for the same premium and for the same period, at expiry, unless notice to the contrary is given by the Insurer or the Insured; if given by the Insurer, the notice of non-renewal or of a change in the premium must be sent to the Insured, at his last known address, not later than the thirtieth day preceding the date of expiry, counting that date. Where the Insured deals through a broker, the notice provided for in the first paragraph is sent by the Insurer to the broker, the latter being entrusted to remit it to the Insured.

21. CANCELLATION

This contract may be cancelled at any time:

a) by each of the Named Insureds giving mere written notice to the Insurer. Cancellation takes effect upon receipt of the notice by the Insurer and the Insured shall therefore be entitled to a refund of the excess of the premium actually paid over the premium earned for the time the contract has been in force, on the basis of the Cancellation Table herein;

b) within sixty days after its coming into force, by the Insurer giving written notice to each Named Insured. Cancellation takes effect fifteen days following receipt of such notice by the Named Insured at his last known address.

At the expiry of such period of sixty days, the contract shall not be cancelled by the Insurer except in the case of an aggravation of risk which is likely to materially influence a reasonable insurer in the decision to continue to insure, or when the premium has not been paid. The Insurer so wishing to cancel the contract shall notify each Named Insured in writing; cancellation takes effect thirty days following receipt of such notice by the Named Insured at his last known address or, if the Described Automobile, with the exception of a school bus, is an automobile contemplated in Title VIII.1 of the Highway Safety Code, fifteen days after receipt of the notice. The Insurer shall refund the excess of the premium actually paid over the earned premium computed on a day to day basis.

Where one or more of the Named Insureds have been mandated to receive or send the notices provided for under paragraph (a) or (b) above, notices sent or received by them shall be deemed to have been sent or received by all Named Insureds.

In this Condition, the words premium actually paid mean the premium actually paid by the Insured to the Insurer or its agent, but do not include any premium or part thereof paid to the Insurer by an agent unless actually paid to the agent by the Insured.

22. NOTICE

Any notice to the Insurer may be sent by any recognized means of communication to the Insurer or its authorized representative. Notice may be given to the Named Insured by letter personally delivered to him or by mail addressed to him at his last known address.

Q.E.F. NO. 6-96 - CONTRACTUAL LIABILITY ENDORSEMENT APPLICABLE TO THE NON-OWNED AUTOMOBILE POLICY Q.P.F. NO. 6

It is agreed that Exclusion (5) of Section A of the policy is amended to read as follows:

(5) For any liability assumed voluntarily by any person insured by this policy under any contract or agreement other than those stated below:

All written contracts including any other written agreement assuming the liability of others except:

- (1) Any contract or agreement assuming the legal liability of the automobile owner.
- (2) Any contract or agreement wherein the Insured has assumed liability for the sole negligence of the indemnitee.

All other terms and conditions of the policy remain unchanged.

**Q.E.F. NO. 6-99 - EXCLUDING LONG TERM LEASED VEHICLE ENDORSEMENT
APPLICABLE TO THE NON-OWNED AUTOMOBILE POLICY Q.P.F. NO. 6**

In consideration of the premium for which this policy is issued, it is understood and agreed that Clause 3 of the General Provisions, Definitions and Exclusions of the policy is hereby amended to read as follows:

3. DEFINITIONS

In this policy:

(a) The term hired automobiles means:

- (i) automobiles hired or leased from others with drivers;
- (ii) hired or leased by the Named Insured from others without driver for periods not exceeding 30 days, used under the control of the Insured in the business stated in the Declarations but shall not include any automobile owned in whole or in part by or registered in the name of the Insured or any employee, shareholder, officer, member, partner or mandatary of the Insured.

All other terms and conditions of the policy remain unchanged.

**Q.E.F. NO. 6-94 - CIVIL LIABILITY RESULTING FROM DAMAGE TO HIRED AUTOMOBILES AND/OR
AUTOMOBILES OPERATED UNDER CONTRACT ENDORSEMENT
APPLICABLE TO THE NON-OWNED AUTOMOBILE POLICY Q.P.F. NO. 6**

In consideration of the premium stated in the Declarations, it is understood and agreed that the following Section is added to this policy, subject always to the condition that the Insurer shall be liable under the Subsection or Subsections of the Insuring Agreement hereof for which a premium is stated and no other.

SECTION B – CIVIL LIABILITY FOR DAMAGE TO HIRED AUTOMOBILES AND/OR AUTOMOBILES OPERATED UNDER CONTRACT

The Insurer agrees to indemnify the Insured against the pecuniary consequences of the contractual or extracontractual liability of the Insured for loss of or damage to "hired automobiles" or "automobiles operated under contract", as defined in General Provisions, Definitions and Exclusions of the policy to which this endorsement is attached, including their equipment, caused by the perils described herein for which a premium is specified.

COVERAGE LIMITS

When any of the following Subsections are listed in the Declarations, coverage shall apply only for those Limit(s) or Amount(s) and for those Type(s) of Automobiles as listed or in the Declarations for such Subsections.

Subsection 1 – ALL PERILS

Subsection 2 – COLLISION OR UPSET

Collision includes collision with (a) a vehicle to which the automobile is attached and (b) the surface of the ground. Upset means the total or partial upset of the automobile.

Subsection 3 – COMPREHENSIVE - meaning any peril other than collision or upset.

For the purpose of Subsection 3, loss or damage caused by missiles, falling or flying objects, fire, theft, explosion, earthquake, windstorm, hail, rising water, malicious mischief, riot or civil commotion shall be deemed loss or damage caused by perils for which insurance is provided under Subsection 3. In addition, coverage under Subsection 3 is extended to include loss or damage caused by collision with a person or with an animal.

Subsection 4 – SPECIFIED PERILS – meaning fire, lightning, theft or attempted theft, explosion, earthquake, windstorm, hail, rising water, riot or civil commotion, falling or forced landing of aircraft or of parts of aircraft, or the stranding, sinking, burning, derailment or collision of any conveyance in or upon which the automobile is being transported on land or water.

DEDUCTIBLE CLAUSE

The Insured shall be required to contribute the deductible amount stated in the Declarations with respect to loss or damage insured under Section B, except for loss or damage by fire or lightning, in any one occurrence.

EXCLUSIONS

The Insurer shall not be liable under any Subsection of Section B for loss or damage:

(1) to any automobile while personally driven by the Named Insured if the Named Insured is an individual;

(2) (a) to tires or consisting of or caused by mechanical fracture or breakdown of any part of an automobile or by rusting, corrosion, wear and tear, freezing, or explosion within the combustion chamber, unless the loss or damage is coincident with other loss or damage covered by such Subsection or is caused by fire, theft or malicious mischief covered by such Subsection;

(b) to any automobile while being used without the consent of the owner thereof;

(c) to contents of trailers;

(d) to tapes and equipment for use with a tape player or recorder, or to compact discs, unless such tapes, equipment or discs are in the tape player, recorder or disc player;

(e) caused directly or indirectly by bombardment, invasion, civil war, insurrection, rebellion, revolution, military or usurped power, or by operation of armed forces while engaged in hostilities, whether war be declared or not;

(3) under Subsections 3 and 4 for loss or damage caused by theft by anyone whose domicile is the same as the Insured's, or by any employee of the Insured engaged in the operation, maintenance, repair, servicing or parking of the automobile whether the theft occurs in the course of such service or employment or not.

ADDITIONAL AGREEMENTS

(1) Where loss or damage arises from a peril insured against hereunder, the Insurer further agrees to pay general average and salvage charges, and customs duties of Canada or of the United States of America, for which the Insured is civilly liable.

(2) The Insurer further agrees to bear any fees the Insured is charged by a municipality under the Act respecting municipal taxation for the use of its fire protection service when the fire department is called to prevent or fight fire in the automobile.

(3) The Additional Agreements under Section A shall, insofar as they are applicable to the subject matter of this endorsement, extend to the indemnity provided herein.

The advance premiums for this endorsement are subject to adjustment in the same manner as those stated in the Declarations.

All other terms and conditions of the policy remain the same.